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In The

Supreme Court of the United States

SIMON BALDERAS, GILBERTO Z. TORRES and TEXAS LEAGUE OF UNITED LATIN AMERICAN CITIZENS,

Appellants,

v.

STATE OF TEXAS, ET AL.,

Appellees.

On Appeal From The United States District Court For The Eastern District Of Texas

JURISDICTIONAL STATEMENT

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QUESTIONS PRESENTED

WHETHER THE DISTRICT COURT ERRED IN CONCLUDING THAT PROPOSED LATINO VOTER-REGISTRATION MAJORITY DISTRICTS FAIL TO SHOW THAT LATINOS ARE SUFFICIENTLY NUMEROUS TO CONSTITUTE THE "MAJORITY" IN ADDITIONAL DISTRICTS?

WHETHER THE DISTRICT COURT ERRED IN HOLDING THE LATINO POPULATION INSUFFICIENTLY COMPACT WHEN PROPOSED LATINO DISTRICTS WERE AS OR MORE COMPACT THAN OTHER DISTRICTS THAT THE COURT DREW OR RATIFIED?

WHETHER THE DISTRICT COURT ERRED IN SUMMARILY CONCLUDING, WITHOUT ANY FINDINGS OF FACT FOLLOWING A TRIAL, THAT A CHALLENGED REDISTRICTING PLAN DOES NOT DENY PLAINTIFFS AN EQUAL OPPORTUNITY TO PARTICIPATE IN THE POLITICAL PROCESS?

PARTIES TO THE PROCEEDING

Simon Balderas, Gilberto Z. Torres, and the Texas League of United Latin American Citizens were the plaintiffs in the District Court and are the appellants in this Court. The State of Texas and various of its officials, listed below, were defendants in the District Court and are appellees in this Court. A number of plaintiff-intervenors in the District Court are appellants in this Court and are filing separate jurisdictional statements. A complete list of parties to the proceeding follows:

Plaintiffs:

1. Simon Balderas
2. Gilberto Z. Torres
3. Texas League of United Latin American Citizens

Plaintiff Intervenors:

1. Brian Manley
2. Frank D. Sandoval Jr.
3. Eugene Pack
4. Congressman Tom DeLay
5. Congressman Joe Barton
6. Congressman John Culberson
7. Associated Republicans of Texas
8. John Denoyelles
9. Morris Overstreet
10. Boyce T. Breedlove
11. David Brown
12. David O. Zambrano
13. Joy Smith
14. Vivian Harris
15. Tony Campos
16. Ed Gonzales
17. Margaret P. Rodriguez

PARTIES TO THE PROCEEDING – Continued

18. Michael Moon
19. Dan Pedroza
20. Pauline Dixon
21. Raphael Quintanilla
22. Hargie Faye Savoy
23. Ralph McCloud
24. Dianna Villasana
25. Gina Dixon
26. Alex Vidales Sr.
27. George Rios
28. Roy Stanley
29. Phyllis Cottle
30. Dorothy M. Lee
31. Molly Woods
32. J. B. Mayfield
33. Ledbetter Neighborhood Association
34. Williamson County, Texas
35. Texas Farm Bureau Mutual Insurance Company
36. Roy Millner
37. Bonnie Breazeale
38. Bennie Escobar
39. Denise Escobar
40. William R. Leo
41. Jesse Diaz
42. Lulac 4496 of Dallas
43. Congresswoman Eddie Bernice Johnson
44. Stephan Leroy Honore
45. Henry Martinez
46. Atascosa County, Texas
47. Bell County, Texas
48. Grayson County, Texas
49. Johnson County, Texas
50. Wichita County, Texas
51. Texas State Conference of NAACP Branches

PARTIES TO THE PROCEEDING – Continued

52. Texas Coalition of Black Democrats
53. Art Murillo
54. Charles E. Vinn Sr.
55. Juanita Valdez-Cox
56. Leo Montalvo
57. Rolando Arriola
58. Emily Amps
59. Louis Laster
60. Terry Meza
61. Congressman Kevin Brady
62. Congressman Sam Johnson
63. Congressman Gene Green
64. Congresswoman Sheila Jackson Lee
65. Congressman Nicholas Lampson
66. Lester Bellow
67. Homer C. Guillory
68. Willie Davis
69. John Bland
70. Mexican-American Legislative Caucus, Texas House of Representatives
71. Guy C. Jackson III
72. John Archer
73. Howard County, Texas
74. Phil Sudan
75. Congressman Ken Bentsen
76. The Texas Legislative Black Caucus

Defendants and Defendant Intervenors:

1. State of Texas
2. Rick Perry, Governor of Texas
3. James "Pete" Laney, Speaker of the Texas House of Representatives

PARTIES TO THE PROCEEDING – Continued

4. Henry Cuellar, Secretary of State of Texas
5. Susan Weddington, Chair of Texas Republican Party
6. Molly Beth Malcolm, Chair of Texas Democratic Party
7. Bill Ratliff, Lieutenant, Governor of Texas
8. John Cornyn, Attorney, General of Texas
9. Carol Keeton Rylander, Comptroller of Public Accounts of Texas
10. David Dewhurst, Texas Land Commissioner

TABLE OF CONTENTS

Page

QUESTIONS PRESENTED i

PARTIES TO THE PROCEEDING ii

TABLE OF CONTENTS vi

TABLE OF AUTHORITIES vii

JURISDICTION 1

OPINIONS AND ORDERS BELOW 1

RELEVANT STATUTES AND REGULATIONS 1

STATEMENT OF THE CASE 1

A. Factual Background 3

B. Procedural History 4

C. District Court's Orders 5

1. Congressional Redistricting Plan 5

2. Senate Redistricting Plan 6

ARGUMENT – THE QUESTIONS PRESENTED IS SUBSTANTIAL 8

I. Precedent Establishes Clear Requirements to Evaluate Claims of Dilutive "Packing" Under Section 2 of the Voting Rights Act 11

II. The District Court Erred in its Analysis of Numerosity Under the First *Gingles* Precondition 14

III. The District Court Applied an Incorrect "Compactness" Standard 18

IV. The District Court Erred in Failing to Make Findings in Support of its Conclusions Sufficient to Allow Proper Appellate Review 20

CONCLUSION 26

TABLE OF AUTHORITIES

Page

FEDERAL CASES

Beer v. United States, 425 U.S. 130 (1976) 25

Bush v. Vera, 517 U.S. 952 (1996) 18

Campos v. City of Houston, 113 F.3d 544 (5th Cir. 1997) 15

Cane v. Worchester County, Md., 35 F.3d 921 (4th Cir. 1994), *cert. denied*, 513 U.S. 1148 (1995) 16, 18

Clark v. Calhoun County, Miss., 21 F.3d 92 (5th Cir. 1994) 18, 21

Cousin v. McWherter, 46 F.3d 568 (6th Cir. 1995) 21

Gingles v. Edmisten, 590 F. Supp. 345 (1984), *aff'd sub nom. Thornburg v. Gingles*, 478 U.S. 30 (1986) 15

Gomez v. City of Watsonville, 863 F.2d 1407 (9th Cir. 1988), *cert. denied*, 489 U.S. 1080 (1989) 17

Goosby v. Town of Hempstead, NY, 956 F. Supp. 326 (E.D.N.Y. 1997) 18

Goosby v. Town of Hempstead, NY, 180 F.3d 476 (2d Cir. 1999), *cert. denied*, 528 U.S. 1138 (2000) 16

Growe v. Emison, 507 U.S. 25 (1993) 12, 15

Harvell v. Ladd, 958 F.2d 226 (8th Cir. 1992) 22

Houston v. Lafayette County, 56 F.3d 606 (5th Cir. 1995) 18

Hunt v. Cromartie, 121 S. Ct. 1452 (2001) 26

Jenkins v. Red Clay Consolidated School District Board of Education, 4 F.3d 1103 (3d Cir. 1993), *cert. denied*, 512 U.S. 1252 (1994) 16

Johnson v. De Grandy, 512 U.S. 997 (1994).....13, 17

TABLE OF AUTHORITIES – Continued

Page

Johnson v. Hamrick, 196 F.3d 1216 (11th Cir. 1999) 21

Kelley v. Everglades Drainage District, 319 U.S. 415 (1943) 26

Kirksey v. Board of Supervisors, 554 F.2d 139 (5th Cir. 1977), *cert. denied*, 434 U.S. 968 (1977) 17

Lee County Branch of the NAACP v. City of Opelika, 748 F.2d 1473 (11th Cir. 1984).... 21

McNeil v. Springfield Park District, 851 F.2d 937 (7th Cir. 1988), *cert. denied*, 35 F.3d 921 (1989) 16

Negron v. City of Miami Beach, 113 F.3d 1563 (11th Cir. 1997) 16

Rogers v. Lodge, 458 U.S. 613 (1982) 20

Romero v. City of Pomona, 883 F.2d 1418 (9th Cir. 1989).... 16

Sanchez v. Colorado, 97 F.3d 1303 (10th Cir. 1996), *cert. denied*, 520 U.S. 1229 (1997) 16, 21

Statewide Reapportionment Advisory Committee v. Theodore, 508 U.S. 968 (1993).... 21

Thornburg v. Gingles, 478 U.S. 30 (1986) .... *passim*

Uno v. City of Holyoke, 72 F.3d 973 (1st Cir. 1995) 17

Valdespino v. Alamo Hts. Independent Sch. District, 168 F.3d 848 (5th Cir. 1999), *cert. denied*, 528 U.S. 1114 (2000).... 15

Vera v. Bush, 933 F. Supp. 1341 (S.D. Tex. 1996) 19

Voinovich v. Quilter, 507 U.S. 146 (1993) 12

Westwego Citizens for Better Government v. City of Westwego, 872 F.2d 1201 (5th Cir. 1989).... 21

White v. Regester, 412 U.S. 755 (1973).... 20

TABLE OF AUTHORITIES – Continued

Page

FEDERAL STATUTES

28 U.S.C. § 1253 1

28 U.S.C. § 1291 1

28 U.S.C. § 2101(b) 1

42 U.S.C. § 1973(a) 11

Fed. R. Civ. P. 52(a) 1, 25

S. Rep. No. 97-417 (1982) 11, 20, 23

Section 2 of the Voting Rights Act of 1965, 42 U.S.C. § 1973 ..... *passim*

MISCELLANEOUS

Richard H. Pildes & Richard G. Niemi, Expressive Harms, "Bizarre Districts," and Voting Rights: Evaluating Election-District Appearances After Shaw v. Reno, 92 Mich. L. Rev. 483, 555 & n. 203 (1993) 19

Department of Justice Guidance Concerning Redistricting and Retrogression Under Section 5 of the Voting Rights Act, 66 Fed. Reg. 12, 5412 (2001) 25

JURISDICTION

This Court has jurisdiction under 28 U.S.C. §§ 1253 and 1291 to review the District Court's orders issued following the congressional redistricting and senate redistricting phases of trial in this case. Plaintiffs-appellants filed their notice of appeal on December 14, 2001, within the time period specified in 28 U.S.C. § 2101(b). Appellants' Juris. Statement App. ("J.S. App.") at 20. Plaintiffs-appellants filed an amended notice of appeal on January 29, 2002 in response to a January 18, 2002 amended judgment in the senate portion of the case. J.S. App. at 39.

OPINIONS AND ORDERS BELOW

The Orders following the congressional and senate phases of the case are not yet reported and are reprinted in full in the Appendix. J.S. App. at 1, 21.

RELEVANT STATUTES AND REGULATIONS

Section 2 of the Voting Rights Act of 1965, 42 U.S.C. § 1973, is reproduced at J.S. App. at 41. Federal Rule of Civil Procedure 52(a) is reproduced at J.S. App. at 42.

STATEMENT OF THE CASE

Section 2 of the Voting Rights Act mandates adoption of redistricting plans that afford Latino citizens an equal opportunity to participate in the political process and to

elect representatives of their choice. 42 U.S.C. § 1973; *Thornburg v. Gingles*, 478 U.S. 30 (1986). Plaintiffs-appellants allege that the Texas congressional and state senate plans violate the Voting Rights Act because they dilute Latino voting strength.

After the Texas Legislature failed to enact any redistricting plan in its 2001 session, the Texas Legislative Redistricting Board (LRB) convened and enacted state legislative redistricting plans, including the senate plan challenged here.

Plaintiffs-appellants' (hereafter "plaintiffs") suit challenging these state legislative redistricting plans and seeking the adoption of a congressional redistricting plan proceeded to trial before a three-judge panel of the United States District Court for the Eastern District of Texas in October and November, 2001. The District Court upheld the LRB's senate redistricting plan, which contained the same number of Latino-majority districts as the previous decade's redistricting plan. In addition, the District Court crafted its own congressional plan that contained the same number of Latino-majority districts as the previous decade's redistricting plan. In both the congressional and senate phases of the case, the lower court erroneously ruled, without explanation of its reasoning, that proposed districts in which Latinos comprise the majority of registered voters fail to satisfy the first precondition for section 2 relief, as established in *Thornburg v. Gingles*.

Plaintiffs appeal the District Court's decisions with respect to the Texas congressional and senate redistricting plans. The District Court failed to apply properly the

standards for relief under section 2 of the Voting Rights Act. As a matter of law, plaintiffs' showing meets and exceeds what the Voting Rights Act requires. In addition, as its lack of any findings demonstrates, the District Court also failed to give adequate consideration to the voting rights claims before it.

A. Factual Background

The 2000 Census revealed that the Hispanic[1] population of Texas increased by 2.3 million persons during the preceding decade. This rise in the Latino population, amounting to 60 percent of the state's growth overall, contrasted sharply with an increase of only 641,000 Anglo persons.[2] As Latinos rose to 32 percent of the state's population, Texas gained two additional congressional seats, bringing the total number of seats in the Texas delegation to 32.

Against this backdrop of Latino population growth, the Texas Legislature, the state judiciary and ultimately the federal court undertook the task of statewide redistricting. The Texas Legislature adjourned its regular session on May 28, 2001 without enacting any redistricting plans. The LRB, charged by default with the responsibility of crafting state legislative districts, convened on

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[1] Plaintiffs employ the terms "Latino" and "Hispanic" interchangeably. Generally, "Latino" is the preferred term in this brief, except with respect to census figures because, although the Census Bureau also views the two terms as synonyms, "Hispanic" is the Bureau's preferred nomenclature in its data reports.

[2] The term "Anglo" refers to Non-Hispanic White persons.

June 6, 2001. On July 24, 2001, the LRB enacted plans for the Texas House and Texas Senate. Texas congressional redistricting remained unaddressed by the state legislature when Governor Rick Perry declared that he would not convene a special legislative session for the purpose of congressional redistricting.

B. Procedural History

Plaintiffs filed this challenge to congressional, senate and house redistricting in the United States District Court for the Eastern District of Texas, which initially deferred action pending resolution of state court lawsuits. After parties filed suit in various state courts, the Texas Supreme Court declared that dominant jurisdiction lay in the Travis County District Court, and the state-court congressional redistricting litigation proceeded to trial in September 2001. After trial, on October 19, 2001, the Texas Supreme Court vacated the redistricting plan crafted by the Travis County court. Noting that, as a result, there was no state plan in place for congressional redistricting, the United States District Court commenced trial in the congressional phase of this litigation on October 22, 2001. The United States District Court subsequently tried the senate phase of the case on November 5 and 6, 2001.

The District Court issued its own congressional plan on November 14, 2001 and, on November 28, 2001, upheld the LRB's senate plan. Plaintiffs filed their notice of appeal on December 14, 2001 and filed their amended

notice of appeal on January 29, 2002 in response to an amended judgment.

C. District Court's Orders

1. Congressional Redistricting Plan

The District Court's adopted congressional redistricting plan did not include a single additional Latino-majority congressional district, and instead placed the state's two new congressional districts in majority-Anglo suburban areas. New Congressional District 31 connects the suburbs of Houston and Austin and is more than 70 percent Anglo. New Congressional District 32 is located in the Dallas suburbs and is more than 60 percent Anglo.

The District Court's plan did maintain pre-existing Latino-majority districts, but these districts had, with the dramatic growth of the Texas Latino population, become more densely populated with Latino residents over the past decade. Rejecting plaintiffs' request to redistrict the South Texas region to include seven districts with a Latino voter majority, the District Court created in that region only six districts, with an average 72 percent Latino population.

Although much of the evidence at trial focused on the question of minority voting rights, the lower court made no findings of fact regarding Latino population increase, geographic concentration, cohesive voting among Latinos, or Anglo bloc voting. The District Court examined none of the factors identified in the Senate Report accompanying the 1982 amendments to the Voting Rights Act as relevant to a vote dilution inquiry.

Concluding that "the evidence shows that the Latino population is not sufficiently compact or numerous to support another, effective majority Latino citizenship district in Texas," the District Court failed to consider any of the factual evidence that plaintiffs presented in satisfaction of the first *Gingles* precondition, including, most importantly, plaintiffs' proposed seven Latino registered-voter majority districts in South Texas. J.S. App. at 43.

Within a 16-page opinion, the District Court's entire discussion of Latino vote dilution is confined to four sentences:

> We find that the plaintiffs have failed to prove that vote dilution will occur in violation of section 2 of the Voting Rights Act in the absence of seven Latino citizenship majority congressional districts. . . . The evidence did not persuade us that . . . Latino . . . voting age populations are sufficiently numerous to form voting age population majorities in effective districts. . . . As for the proposed Latino opportunity districts, the evidence shows that the Latino population is not sufficiently compact or numerous to support another, effective majority Latino citizenship district in Texas, in Dallas County or in South Texas. We find that, under the totality of the circumstances, the failure to create seven such districts will not prevent full and equal Latino participation in the political process.

J.S. App. at 12, 14-15.

2. Senate Redistricting Plan

Two weeks after issuing its decision in the congressional phase of the case, the District Court upheld the

31-seat senate redistricting plan that the LRB created. This senate plan created only six Latino majority districts in South Texas. In this phase of the litigation, plaintiffs again proposed seven Latino voter majority districts in the region (J.S. App. at 46), and the District Court again concluded that plaintiffs had failed to satisfy the requirements of the first *Gingles* precondition.

The District Court adopted its earlier conclusions from the congressional phase of the case and did not consider facts and evidence relevant to plaintiffs' proposed senate districts, despite the fact that plaintiffs' proposed senate districts were geographically different from plaintiffs' proposed districts in the congressional phase.

The court's entire relevant discussion is as follows:

> Looking first to the Balderas . . . plaintiffs' claims, we must reject these claims for reasons substantially similar to those given in our decision in the congressional redistricting case. The record before us demonstrates that the Latino population is not sufficiently compact or numerous to support another, effective majority Latino citizenship district in Dallas and Tarrant Counties or in South Texas. We further find that, under the totality of the circumstances, the failure to create a seventh Latino-majority district will not prevent full and equal Latino participation in the political process. Rather, creating such a district would risk giving rise to retrogression in the existing Latino-majority districts. We conclude that these plaintiffs have failed to prove that section 2 of the Voting Rights Act

> requires any correction to the LRB Senate plan based on allegations of Latino vote dilution.

J.S. App. at 26.

ARGUMENT – THE QUESTIONS PRESENTED IS SUBSTANTIAL

With growth in the Latino population largely responsible for the increase in Texas' population in the 1990s and for the concomitant state gain of two congressional seats following the 2000 Census, plaintiffs invoked the jurisdiction of the federal court to draw new congressional and state legislative district lines cognizant of the need to prevent Latino vote dilution. Even though these Voting Rights Act claims are what led to the convening of a three-judge District Court, the court paid scant attention to the claims in subsequently designing a congressional redistricting plan and ratifying a Texas state senate plan. While the panel described at some length how it balanced the interests and arguments of the myriad partisan political interests that intervened in plaintiffs' action, it rejected plaintiffs' serious civil rights claims with a few conclusory lines and no findings of fact or clear conclusions of law whatsoever. Although the panel invoked the proper phrase, "totality of the circumstances," in rejecting plaintiffs' claims, its cursory decision demonstrates a failure to evaluate that totality and a failure to provide the parties and this Court an adequate basis from which to assess or understand the panel's conclusions. This error sets a dangerous precedent for the subordination of voting rights claims in litigation following future decennial redistricting throughout the nation.

Even more troubling and important than the District Court's cursory overall evaluation are two erroneous legal conclusions underlying its sparely-worded rejection of plaintiffs' claims. First, the court held that Latinos were not numerous enough to constitute a "majority" in an additional congressional district or an additional senate district even though plaintiffs proved that Latinos could constitute over 50 percent of registered voters in such districts. In an abundance of caution made possible by the substantial numbers of Latinos residing in South Texas, plaintiffs presented and requested only the creation of Latino *voter-registration* majority districts in South Texas even though no federal court had ever before required such a high threshold – previous courts having opted instead for population, voting age, or citizen voting age majority standards.

Although Fifth Circuit precedent itself firmly establishes a lesser standard, the District Court nonetheless rejected plaintiffs' satisfaction of the unprecedentedly difficult voter-registration standard. The District Court thus imposed, without fully articulating it, an even higher standard still – a standard that is at once both difficult to conceive and nigh impossible to achieve. The boundless nature of the court's implied standard – exceeding a voter majority by an immeasurable amount – is contradictory to *Gingles*, which crafted the majority-minority standard as a measure of opportunity to elect in a district where a minority group's voting strength is not overridden because of its size. The District Court's error sets a standard that could render the Voting Rights Act a dead letter; such a precedent requires correction.

Matching this unprecedented standard for numerosity under the Voting Rights Act and *Gingles*, the District Court also imposed an impossible – and again wholly unarticulated – measure of compactness. Without ever explaining why, the court concluded that the Latino population of South Texas is not sufficiently compact to warrant an additional senatorial or congressional district. Yet, in other parts of the Texas maps, the court simultaneously adopted or ratified districts of lesser compactness. Moreover, plaintiffs' proposed Latino-majority districts were as compact or more compact than court-reviewed districts that applied in Texas throughout the 1990s. Thus, despite precedent establishing the appropriateness of a relaxed compactness standard for Voting Rights Act remedies, the court actually imposed a stricter standard than it applied to other districts. This error, like its companion described above, sets a precedent whose ill-defined but nonetheless apparent effect is to render Voting Rights Act claims nearly impossible ever to prove.

The District Court's errors threaten to subject plaintiffs and other Latino voters in Texas to a decade of elections in districts that dilute their voting strength. Moreover, the insult to this ongoing injury lies in a largely unexplained federal court review whose only obvious instruction for future challenges is to establish largely unachievable standards under section 2 of the Voting Rights Act for "majority" and compactness. These erroneous precedents, together with the District Court's failure to explain its reasoning through findings of fact and clear rulings of law, expand the threat to voting rights to other jurisdictions, within and outside the Fifth Circuit, and to other minority communities. These errors

present substantial questions that necessitate this Court's careful review.

I. Precedent Establishes Clear Requirements to Evaluate Claims of Dilutive "Packing" Under Section 2 of the Voting Rights Act.

Section 2 of the Voting Rights Act prohibits any state or political subdivision from imposing a "voting qualification or prerequisite to voting or standard, practice or procedure . . . in a manner which results in the denial or abridgement of the right to vote on account of race or color." 42 U.S.C. § 1973(a).

In enacting the 1982 amendments to the Voting Rights Act, Congress explicitly intended the act to protect minority voters from mechanisms which had the *effect* of diminishing their voting strength. "[D]iscriminatory election systems or practices which operate, designedly or otherwise, to minimize or cancel out the voting strength and political effectiveness of minority groups, are an impermissible denial of the right to have one's vote fully count, just as much as outright denial of access to the ballot box." S. Rep. No. 97-417, at 28 (1982).

This Court's opinion in *Thornburg v. Gingles* provides the framework for determining the existence of vote dilution after the 1982 amendments. Under *Gingles*, plaintiffs first must demonstrate:

1. that the minority community is sufficiently large and compact to constitute a majority in a single-member district;

2. that minorities are politically cohesive; and,

3. that the white majority votes as a bloc generally to defeat the minority's preferred candidate.

Gingles, 478 U.S. at 50-51.

After this *Gingles* three-part threshold is met, plaintiffs must also show that, under the "totality of the circumstances," they do not possess the same opportunities to participate in the political process and elect representatives of their choice enjoyed by other voters.

The *Gingles* framework, including the three-part threshold test, was developed in litigation over multi-member electoral districts, but it also applies in single-member district cases challenging the failure to draw a sufficient number of majority-minority districts. *Growe v. Emison*, 507 U.S. 25, 40 (1993). Thus, the framework applies to cases, like this one, challenging redistricting after the decennial census.

"Packing" minority voters is a well-recognized dilutive mechanism. "How such concentration or 'packing' may dilute minority voting strength is not difficult to conceptualize. A minority group, for example, might have sufficient numbers to constitute a majority in three districts. So apportioned, the group inevitably will elect three candidates of its choice, assuming the group is sufficiently cohesive. But if the group is packed into two districts in which it constitutes a super-majority, it will be assured only two candidates." *Voinovich v. Quilter*, 507 U.S. 146, 153-154 (1993); *see also Gingles*, 478 U.S. at 46 n. 11 ("Dilution of racial minority group voting strength may be caused [either] by the dispersal of blacks into districts in which they constitute an ineffective minority

of voters or from the concentration of blacks into districts where they constitute an excessive majority.").

Proving dilutive packing in the redistricting context requires plaintiffs to show, in satisfaction of the first *Gingles* precondition, that creating additional majority-minority districts is possible.[3] *Johnson v. De Grandy*, 512 U.S. 997, 1007 (1994).

Had the District Court properly applied this well-established framework for evaluating a claim of dilutive packing, it would have concluded that Latino population growth in Texas over the past decade has resulted in a sufficient number of Latino voters to comprise the majority in seven, as opposed to the pre-existing six, senate and congressional districts in the South Texas region – the pre-existing districts having become "packed" over the course of the 1990s. Instead, without ever explaining the new standards it would apply, the District Court departed from the established framework and applied unprecedented and amorphous standards under the first *Gingles* precondition to deny the addition of Latino voter majority seats in Congress and the Texas Senate. Almost as an afterthought, the court also stated its conclusion on the "totality of the circumstances" without ever considering or determining the effect of evidence presented on that issue.

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[3] Of course, the remainder of the *Gingles* framework also applies to such claims; however, with the exception of its conclusory statement regarding the "totality of the circumstances," the District Court here addressed only the first *Gingles* precondition.

II. The District Court Erred in its Analysis of Numerosity Under the First *Gingles* Precondition.

The District Court improperly denied plaintiffs' claims under section 2 when it rejected, under the first *Gingles* precondition, proposed districts that contained not only a Latino population, voting age, and citizen voting age majority, but a Latino *registered voter* majority.[4] Neither this Court nor any other federal court has ever held plaintiffs to a majority-registration threshold for *Gingles* demonstration districts. Thus, as a matter of law, plaintiffs exceeded what precedent requires, and the District Court improperly rejected plaintiffs' proposed Latino-majority districts.

The District Court had before it substantial and uncontroverted evidence that seven – not six – Latino voter majority districts are possible in South Texas in a congressional and in a senate redistricting plan. A Latino majority among registered voters in each of the seven districts, by definition, constitutes a "majority" in that district for the purposes of the first *Gingles* precondition. Indeed, the term "majority" as used in the first *Gingles* precondition would lose any coherent meaning if registration "majority" – one of the highest conceivable standards of majority status – were deemed not to satisfy the first *Gingles* precondition "majority" threshold.

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[4] The Texas Secretary of State collects and reports information regarding the number of registered voters in the state and the number of registered voters who are Spanish-surnamed, i.e., voters whose names appear on the U.S. Census list of Spanish surnames. These Spanish-surnamed registered voters are referred to in this brief as Latino registered voters.

Moreover, this Court has never required such a high threshold showing as voter-registration majority. *Gingles* itself refers to majority population, and affirmed a lower court ruling that relied on voting age population as the threshold for satisfying the "majority" requirement. *See Gingles v. Edmisten*, 590 F. Supp. 345 (1984), *aff'd sub nom. Thornburg v. Gingles*, 478 U.S. 30 (1986). Subsequently, in *Growe*, this Court referred to total population and voting age population data in satisfaction of the numerosity requirement of the first *Gingles* precondition, but declined to rule on the question of the correct population measure. *Growe*, 507 U.S. at 38 n. 4.

Furthermore, plaintiffs' demonstration of seven senate and congressional districts with a Latino voter majority more than satisfied the Fifth Circuit's own bright-line test for the first *Gingles* precondition. *See Valdespino v. Alamo Hts. Indep. Sch. Dist*, 168 F.3d 848, 852-53 (5th Cir. 1999), *cert. denied*, 528 U.S. 1114 (2000) ("a bright line test" of greater than 50% *citizen voting age population* applied to determine whether plaintiffs constitute a majority in their demonstration district); *Campos v. City of Houston*, 113 F.3d 544, 548 (5th Cir. 1997) (declining to reject citizenship as relevant factor in *Gingles* I analysis). This Fifth Circuit bright-line test is citizen voting age population majority, a standard plaintiffs met and exceeded.[5]

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[5] In the District Court, no party disputed, or could dispute, that, due to lower income and education levels, minorities in general, and Latinos in Texas in particular, register to vote at lower rates than whites. Therefore, because the Latino citizen voting-age proportion in these districts is necessarily higher than the Latino registration proportion, the proposed districts satisfy the Fifth Circuit bright line rule – itself a stringent rule in comparison to other circuits – with additional room to spare.

Despite clear precedent from this Court and the Fifth Circuit, however, the District Court held insufficient plaintiffs' proposed voter-registration majority districts – districts meeting a stricter standard than any other court has ever required minority plaintiffs to meet. *See Goosby v. Town of Hempstead, NY*, 180 F.3d 476 (2d Cir. 1999) (affirming decision that majority voting age population in proposed district met first *Gingles* precondition), *cert. denied*, 528 U.S. 1138 (2000); *Jenkins v. Red Clay Consol. School Dist. Bd. of Educ.*, 4 F.3d 1103 (3d Cir. 1993) (same), *cert. denied*, 512 U.S. 1252 (1994); *Cane v. Worchester County, Md.*, 35 F.3d 921 (4th Cir. 1994) (same), *cert. denied*, 513 U.S. 1148 (1995); *McNeil v. Springfield Park District*, 851 F.2d 937, 944-945 (7th Cir. 1988) (first *Gingles* precondition requires majority voting age population), *cert. denied*, 35 F.3d 921 (1989); *Romero v. City of Pomona*, 883 F.2d 1418 (9th Cir. 1989) (citizen voting age population is appropriate measure); *Sanchez v. Colorado*, 97 F.3d 1303, 1315 (10th Cir. 1996) (majority voting age population in proposed district satisfies first *Gingles* precondition), *cert. denied*, 520 U.S. 1229 (1997); *Negron v. City of Miami Beach*, 113 F.3d 1563, 1567-1568 (11th Cir. 1997) (Latinos could not make out section 2 claim because they could not constitute majority of citizen voting age population in single-member district).

Plaintiffs have been completely unable, despite a thorough search, to uncover any case in any circuit where plaintiffs who, as here, constitute the majority of the *registered voters* in a single-member district, nonetheless lost at the liability phase for failure to fulfill the first *Gingles* precondition.

Thus, the lower court's refusal to hold that plaintiffs' proposed Latino voter-registration majority districts satisfy the first *Gingles* precondition is unprecedented, and constitutes reversible legal error. Because plaintiffs exceeded the highest *Gingles* threshold ever imposed, this Court need not resolve the issue, left undecided to date, "about which characteristic of minority populations ought to be the touchstone for proving a vote dilution claim and devising a sound remedy." *De Grandy*, 512 U.S. 1008-1009. Plaintiffs indisputably proved voter-majority districts; plaintiffs having reached that highest rung, the Court need not decide which of the lower rungs is high enough to scale *Gingles* I, to recognize the District Court's error.[6]

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[6] Although plaintiffs here offered voter-registration majority districts, they did so in an abundance of caution and because Texas demographics offered the opportunity to exercise such caution. Plaintiffs do not suggest that such majorities should become the minimum threshold for satisfying the first *Gingles* precondition. Indeed, because the Voting Rights Act presumes lower voter turnout and diminished political participation among minority groups that still bear the lingering effects of past discrimination in the form of lower socio-economic status, *Gingles*, 478 U.S. at 69, basing the first *Gingles* precondition on a measure of political participation, such as registration, punishes minority groups for bearing the effects of the very dilution they seek to remedy. *See also Gomez v. City of Watsonville*, 863 F.2d 1407 (9th Cir. 1988), *cert. denied*, 489 U.S. 1080 (1989); *Uno v. City of Holyoke*, 72 F.3d 973, 986 (1st Cir. 1995) ("[L]ow voter turnout in the minority community sometimes may result from the intersection of the electoral system with the effects of past discrimination, which together operate to discourage meaningful electoral participation."); *Kirksey v. Board of Supervisors*, 554 F.2d 139, 145 n. 13 (5th Cir. 1977), *cert. denied*, 434 U.S. 968 (1977).

III. The District Court Applied an Incorrect "Compactness" Standard.

With respect to the "compactness" element of the first *Gingles* precondition, the District Court failed to apply any legal standard to evaluate whether the Latino population of the South Texas region is sufficiently compact to comprise the majority in seven congressional or state senate districts. *See Bush v. Vera*, 517 U.S. 952, 997 (1996) (Kennedy, J., concurring) ("The first *Gingles* condition refers to the compactness of the minority population, not to the compactness of the contested district.").[7]

Fifth Circuit precedent required the District Court to apply the compactness test of the first *Gingles* precondition only to evaluate whether an additional Latino-majority district was achievable. *See Houston v. Lafayette County*, 56 F.3d 606, 611 (5th Cir. 1995) (*en banc*) ("[T]he question is not whether the plaintiff residents' proposed district was oddly shaped, but whether the proposal demonstrated that a geographically compact district could be drawn."); *Clark v. Calhoun County, Miss.*, 21 F.3d 92, 95 (5th Cir. 1994) ("[P]laintiffs' proposed district is not cast in stone. It was simply presented to demonstrate that a

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[7] This Court has explained that even section 2 remedial districts challenged as racial gerrymanders must be "reasonably" compact but need not "defeat rival compact districts designed . . . in endless beauty contests." *Vera*, 517 U.S. at 977; *see also Goosby*, 956 F. Supp. 326, 350 n. 28 (E.D.N.Y. 1997) ("a relaxed standard of compactness applies to districts drawn to remedy a section 2 dilution violation"); *Cane*, 35 F.3d at 926 n. 6 (upholding compactness decision of lower court despite fact that proposed majority-minority county commissioner district divided at least two municipalities).

majority-black district is feasible in Calhoun County."). Had it applied that standard to the evidence, the District Court could reach no other conclusion than that the compactness standard was met.

The District Court had before it abundant and uncontradicted evidence regarding the mathematical measures of compactness of plaintiffs' proposed districts and the relative compactness of those districts as compared to past districts enacted by the Texas Legislature. Yet, the District Court did not address this evidence at all in its conclusory holding. The District Court also failed to consider plaintiffs' unchallenged evidence regarding the community of interest encompassed by plaintiffs' proposed districts, as well as expert testimony regarding the historical familial and commercial relationships among residents of the proposed districts.

Most important, plaintiffs' proposed Latino districts were more compact than 10 congressional districts that applied in Texas throughout the 1990s and more compact than 6 remedial congressional districts created by a three-judge District Court in *Vera v. Bush*, 933 F. Supp. 1341 (S.D. Tex. 1996).[8] By most measures, the proposed

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[8] Plaintiffs here refer to the mathematical measure of compactness known as "perimeter to area." The "perimeter to area" measure of compactness was provided in this case by the Texas Legislative Council for every proposed redistricting plan and evaluates the irregularities of a district's borders by calculating the ratio of the district's area to the square of the district's perimeter. *See* Richard H. Pildes & Richard G. Niemi, *Expressive Harms, "Bizarre Districts," and Voting Rights: Evaluating Election-District Appearances After* Shaw v. Reno, 92 Mich. L. Rev. 483, 555 & n. 203 (1993).

districts were more compact than other districts crafted or ratified by the District Court in this very case.

In short, the District Court failed to apply the correct compactness standard – whether it was possible to create reasonably compact districts – in reaching its unsupported conclusion on the first *Gingles* precondition. If left to stand, the District Court's ruling sets an undefined, but unquestionably higher, standard of compactness for section 2 districts that cannot be supported under law or precedent.

IV. The District Court Erred in Failing to Make Findings in Support of its Conclusions Sufficient to Allow Proper Appellate Review.

This Court has long held that cases under the Voting Rights Act require findings that are "a blend of history and an intensely local appraisal of the design and impact of the [challenged practice] in the light of past and present reality, political and otherwise." *White v. Regester*, 412 U.S. 755, 769-770 (1973). The legislative history of the Voting Rights Act reiterates the reasoning of *White* and affirms that "the question whether the political processes are 'equally open' depends on a searching practical evaluation of the 'past and present reality.' " S. Rep. No. 97-417, at 30. Detailed fact finding is required in voting cases because the "determination [of a violation] is peculiarly dependent upon the facts of each case." *Rogers v. Lodge*, 458 U.S. 613, 621 (1982), *quoted in Gingles*, 478 U.S. at 79.

Here, the District Court's failure to evaluate facts related to plaintiffs' vote dilution claim, and to make

factual findings in support of its conclusions, not only deprives this Court of the ability fully to review its ruling, it constitutes reversible error in the context of a Voting Rights Act case. Because of its expansive view of what is required for equitable adjudication of voting rights claims, this Court has remanded Voting Rights Act cases that do not include adequate findings of fact. *See, e.g., Statewide Reapportionment Advisory Comm. v. Theodore*, 508 U.S. 968 (1993) (vacating judgment and remanding for further consideration in light of Solicitor General's position that court gave inadequate consideration to, and made inadequate findings concerning, allegations of vote dilution).

Circuit court decisions similarly insist upon detailed factual findings in Voting Rights Act cases. *See, e.g., Clark*, 21 F.3d at 97 (remanding for failure to make findings related to compactness: "we cannot properly review the District Court's finding because it failed to explain the nature of the 'diverse interests' and why they are so significant that plaintiffs' proposed district could not be effectively represented."); *Sanchez*, 97 F.3d at 1316 ("Broad and general findings, not explicitly tethered to any particular testimony – especially in the [Voting Rights Act] context which demands penetrating case by case, fact bound analysis – simply do not provide the foundation for proper appellate review."); *Westwego Citizens for Better Gov't v. City of Westwego*, 872 F.2d 1201, 1203-1204 (5th Cir. 1989) (findings "manifestly inadequate" because "stated in conclusory fashion, with virtually no reference to the evidence presented at trial"); *Cousin v. McWherter*, 46 F.3d 568, 574-575 (6th Cir. 1995); *Johnson v. Hamrick*, 196 F.3d 1216, 1223 (11th Cir. 1999); *Lee*

County Branch of the NAACP v. City of Opelika, 748 F.2d 1473, 1480 (11th Cir. 1984); *Harvell v. Ladd*, 958 F.2d 226, 229 (8th Cir. 1992).

In this case, the District Court made no findings of fact in deciding the merits of plaintiffs' vote dilution claims in either the congressional or senate phases of the litigation. The District Court's ultimate conclusion that plaintiffs failed to satisfy the first *Gingles* precondition is unaccompanied by any findings of fact regarding plaintiffs' seven proposed districts, including facts about the districts' Latino voting age, citizen voting age, and registered voter majorities; and about the districts' compactness measures, relative compactness as compared to legislatively-drawn congressional districts in the state, and incorporation of traditional communities of interest. The District Court further failed to make any factual findings regarding Latino voter cohesion and Anglo block voting – the second and third *Gingles* factors which are commonly referred to as "racially polarized voting." Finally, although the District Court concluded that "the failure to create a seventh Latino majority district will not prevent full and equal Latino participation in the political process," the court did not make any factual findings related to the requisite "totality of the circumstances" inquiry, including the multiple and broad-ranging factors set forth in the Senate Committee Report to the 1982

amendments to the Voting Rights Act[9] and the factor of proportionality set out in *DeGrandy*, 512 U.S. at 1009-1022.

The District Court's paucity of factual inquiry and analysis resulted in erroneous legal conclusions. For example, despite the District Court's reference to "effective districts" in its ruling under the first *Gingles*

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[9] The factors identified by the Senate Committee are:

1) the history of official discrimination touching upon the right of the minority group to vote or otherwise participate in the political process;

2) the extent to which voting is racially polarized;

3) the extent to which voting practices or procedures have been used to discriminate against the minority group (including use of at-large election systems);

4) the extent to which minority candidates have been denied access to a candidate slating process;

5) the extent to which the minority group bears the effects of discrimination in areas such as education, employment and health which hinder their ability to participate in the political process;

6) whether political campaigns have been subject to racial appeals;

7) the extent to which members of the minority group have been elected to public office.

Additional factors are:

"whether there is a significant lack of responsiveness on the part of elected officials to the particularized needs" of the minority group and "whether the policy underlying the . . . use of such voting qualification, prerequisite to voting, or standard, practice or procedure is tenuous."

S. Rep. No. 97-417, at 28-29.

precondition, the District Court wholly failed to consider evidence crucial to the question whether plaintiffs' proposed Latino voter majority districts, if adopted as remedy, offered Latino voters the opportunity to elect their candidate of choice. The District Court failed to make findings related to the extent of racially polarized voting and the extent to which past discrimination may hinder Latino political participation – two Senate Factors directly related to the issue of Latino ability to elect their candidate of choice – and also failed to evaluate the effect of creating districts with Latino registered voter majorities on the opportunity to elect Latino-preferred candidates.

Similarly, the District Court did not consider plaintiffs' demonstration that voting patterns in the proposed districts would yield victories for Latino-preferred candidates. Furthermore, the District Court did not make findings related to plaintiffs' showing that Latino-majority congressional and senate districts in Texas have historically elected the Latino candidate of choice when the Latino *voting age population* reaches between 50 percent and 55 percent.

Moreover, the District Court failed to consider plaintiffs' evidence regarding the strong upward trend in Latino voter registration in the preceding decade in plaintiffs' proposed districts, and the correspondingly strong likelihood that the proposed districts' Latino voter majorities would be even larger in 2001 and 2002 than they were in 2000 when the voter registration data was gathered by the Texas Secretary of State. Because the District Court did not consider or make findings related to these elements of the totality of the circumstances, there is simply no basis for the District Court's finding

that Latinos in South Texas could not comprise the majority of "effective districts."[10]

Finally, the District Court presented no analysis in support of its conclusion in the senate phase of the case that creating an extra district would be retrogressive, and offered no analysis of electoral performance of current districts or predictions of the performance of future districts.

In order to conclude that the creation of an additional Latino-majority senate district was potentially retrogressive, the court would have to conclude, first, that an additional district, overall, would reduce Latino voters' "effective exercise of the electoral franchise." *Beer v. United States*, 425 U.S. 130, 141 (1976); *see also* Department of Justice Guidance Concerning Redistricting and Retrogression Under Section 5 of the Voting Rights Act, 66 Fed. Reg. 12, 5412 (2001) ("The effective exercise of the electoral franchise usually is assessed in redistricting submissions in terms of the opportunity for minority voters to elect candidates of their choice."). The court presented no such analysis of electoral effectiveness in plaintiffs' proposed senate districts, nor did any party other than plaintiffs offer this analysis to the court.

Fed. R. Civ. P. 52(a) provides: "In all actions tried upon the facts without a jury or with an advisory jury, the court shall find the facts specifically and state separately

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[10] Furthermore, the District Court generalized its "effectiveness" conclusions from the congressional phase of the litigation to the senate phase, in which no party other than plaintiffs offered evidence regarding the expected performance of plaintiffs' proposed districts.

its conclusions of law thereon . . . " The purpose of Rule 52(a) is to ensure an adequate record for appellate review. In reviewing the decision below, this court "must determine whether there is adequate support for the District Court's key findings . . . " *Hunt v. Cromartie*, 121 S. Ct. 1452, 1458 (2001). The District Court's decision in this case makes review of the "findings" impossible.

This Court has firmly established that a trial court may not present conclusions without specific findings of fact to serve as the basis for its reasoning. *See Kelley v. Everglades Drainage District*, 319 U.S. 415, 422 (1943) (vacating judgment and remanding case for "findings, stated either in the court's opinion or separately, which are sufficient to indicate the factual basis for the ultimate conclusion"). The District Court failed in its obligation under Rule 52, and failed to provide this Court with any basis from which to review its rejection of plaintiffs' claims.

CONCLUSION

According to the 2000 Census, Latinos are the largest minority group in the United States, and have become an increasingly significant presence in every region of the country. Therefore, it is increasingly important to ensure that courts apply the proper standards in assessing claims that lawmakers have responded to growth in the Latino community by unlawfully limiting the number of districts in which that community can effect electoral outcomes.

In this case, the District Court failed to apply the proper standards, and, in doing so, established new, ill-

defined, and unprecedented standards that would make section 2 inappropriately difficult to enforce. The court should have recognized that a Latino community is necessarily – as a matter of law – sufficiently numerous to constitute the "majority" in proposed additional districts if it would constitute more than half of all registered voters in those districts. Instead, the court faulted the plaintiffs for failing to meet its own unrealistic, and much higher, threshold for "majority" status. The court also should have determined that the Latino community is compact enough to merit additional districts when those districts would be as compact or more compact than other districts in the state. The District Court instead applied some unknown – again higher – standard to hold Latinos in South Texas insufficiently compact to satisfy section 2. Finally, the District Court should have carefully analyzed all of the evidence and provided findings of fact before drawing any conclusion about the "totality of the circumstances" as defined in *Gingles*. Instead, the court obligatorily invoked "totality," without ever really applying it, in denying plaintiffs' claims.

These errors set regrettable precedents in adjudicating the claims of all Voting Rights Act plaintiffs, not only in redistricting but in at-large challenges as well. More important, these are precedents that many courts could follow in addressing claims by the growing Latino

community. Thus, these errors require this Court's attention. The Court should note probable jurisdiction.

Respectfully submitted,

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IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	
vs.	§	CIVIL ACTION
STATE OF TEXAS, ET AL.	§	NO. 6:01CV158
	§	(Filed Nov. 14, 2001)

This Filing Applies to: All Actions

Before HIGGINBOTHAM, Circuit Judge, HANNAH and WARD, District Judges.

PER CURIAM:

This phase of the redistricting case involves the Texas congressional districts following the 2000 census. After a period of deferral to the State of Texas as mandated in *Growe v. Emison*[1] and the failure of the State to produce a congressional redistricting plan, we are left with the "unwelcome obligation of performing in the legislature's stead."[2] We will describe the course of this litigation and explain the process by which we drew the congressional redistricting plan which we order.[3]

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[1] 507 U.S. 25 (1993).

[2] *Connor v. Finch*, 431 U.S. 407, 415 (1977).

[3] The Congressional Districts imposed by this court's Final Judgment shall bear the number 1151C, which is the next number available for public plans within the Texas Legislative Council's RedAppl 2001 computer program.

I

Voters and various officeholders filed multiple lawsuits in state and federal court challenging the districting of Texas' congressional seats and both houses of the state legislature based on the 2000 census.[4] The federal cases were consolidated into the earliest-filed federal action, *Balderas v. Texas*, No. 6:01-CV-158, before this three-judge court.[5] Pursuant to the Supreme Court's direction in *Growe*, on July 23, 2001 we deferred proceedings in federal court until October 1, 2001. We directed that the trial of any challenge to any state-adopted plan for congressional districts, or of any dispute over an appropriate plan to be adopted if the State adopted no plan, would begin on October 15, 2001. Any trials of the disputes over the districts for the state Senate and House would follow in that order. The record in each trial would rest on the trials which preceded it as well as its own. We prescribed the usual pre-trial tasks. All this was to reduce, if not avoid, any delay in the electoral process and to follow the specific command of the Supreme Court in *Growe*.

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[4] *Balderas v. Texas*, Civil No. 6:01-CV-158 (E.D. Tex.); *Mayfield v. Texas*, Civil No. 6:01-CV-218 (E.D. Tex.); *Manley v. Texas*, Civil No. 6:01-CV-231 (E.D. Tex.); *Del Rio v. Perry*, No. GN-003665 (353rd Dist. Ct., Travis County, Tex.); *Cotera v. Perry*, No. GN-101660 (353rd Dist. Ct., Travis County, Tex.); *Connolly v. Perry*, No. GN-102250 (98th Dist. Ct., Travis County, Tex.); *Associated Republicans of Texas v. Cuellar*, No.2001-26894 (281st Dist. Ct., Harris County, Tex.); *Rivas v. Cuellar*, No.2001-33760 (152nd Dist. Ct., Harris County, Tex.).

[5] Other three-judge courts had dismissed prior suits filed prematurely.

On September 12, 2001, the Texas Supreme Court determined that the Travis County trial court had dominant jurisdiction among the state cases to hear the various plaintiffs' redistricting claims and held that a state trial court in Travis County must decide the districting dispute. The Travis County court commenced trial on September 17, 2001. It heard testimony and arguments from all the parties, concluding trial on September 28, 2001.

On October 1, 2001, at the request of the state trial judge, we extended the deadline for the filing of any congressional redistricting plan to October 3, 2001. On October 3, the state trial court issued a plan, known as 1065C. No provision was made in our October 1 order for the filing of any new plan, although the state trial judge advised that he might modify the plan on or before October 10, 2001. The schedule we had provided did not contemplate major changes in the state court plan filed on October 3. On October 10, 2001, the state court nonetheless issued a new plan, known as 1089C. We immediately delayed the start of any federal trial for one week to October 22 at the request of the parties who pointed to the need for additional time given the substantial differences between the two plans of the state court. On October 19, 2001, however, the Texas Supreme Court vacated the trial court's October 10, 2001 judgment based on a violation of the parties' state constitutional rights and remanded the case to the state trial court.[6] The Texas Supreme Court also concluded that 1065C, the first plan

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[6] *Perry v. Del Rio*, No. 01-0988, 2001 WL 1285081, at *9 (Tex. Oct. 19, 2001).

of the state trial court, was not the baseline plan for this court to use, because 1065C was never adopted as a final judgment by the state trial court. The Texas Supreme Court acknowledged that the end result of the state processes left the federal courts with no choice but to proceed without the benefit of a state plan.[7]

As forecasted by the Texas Supreme Court, we proceeded to trial in Austin, Texas on October 22, 2001, without a state baseline plan in place. This court heard testimony and took evidence on congressional redistricting plans between October 22 and November 1, concluding with final argument on November 2. The parties filed post-trial briefs on November 7, 2001. After reviewing the evidence and the parties' submissions, we now turn to our decision implementing a plan for the redistricting of the Texas congressional districts based on the 2000 census.

II

Federal courts have a limited role in crafting a congressional redistricting plan where the State has failed to implement a plan. The limits are not to be found in the traces of the unconstitutional plan being replaced. "Although a court must defer to legislative judgments on reapportionment as much as possible, it is forbidden to do so when the legislative plan would not meet the special standards of population equality and racial fairness that are applicable to court-ordered plans."[8] Rather,

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[7] *Id.*

[8] *Upham v. Seamon*, 456 U.S. 37, 39 (1982) (per curiam).

the court must draw a redistricting plan according to "neutral districting factors," including, *inter alia*, compactness, contiguity, and respecting county and municipal boundaries.[9] The 1991 plan as modified in 1996 is conceded by all parties to be unconstitutional, made so by changes in population disclosed by the decennial census, if not also for other reasons. In our effort to steer the required neutral course through this political sea, we have been assisted by the many distinguished political scientists who have testified in this case.

Dr. John Alford, Rice University professor of political science, detailed in his trial testimony a process drawing upon principles of district line-drawing that stand politically neutral. We found that process, substantially parallel to our preliminary thinking and that of other courts, to be the most appropriate for our judicial task.

Our decisional process accepted the reality that, as with so many decisional processes, the sequence of decisions is critical. Starting with a blank map of Texas, we first drew in the existing Voting-Rights-Act protected majority-minority districts. We were persuaded that the next step had to be to locate Districts 31 and 32, the two new Congressional seats allotted to Texas following the 2000 census. As observed by Dr. Alford, the most natural and neutral locator is to place them where the population growth that produced the new additional districts has occurred.[10] It is self-evident that this locator is, across

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[9] *See Abrams v. Johnson*, 521 U.S. 74, 88, 98 (1997); *Miller v. Johnson*, 515 U.S. 900, 916 (1995).

[10] We are not the first court to see the wisdom of this choice.

cases, neutral down to the immediate area, if not in the ultimate, precise fit on the ground. Here the new districts' precise landing was virtually dictated by step 1. When we sent the two new districts to the areas of greatest population growth, Dallas County and Harris County, the districts necessarily landed in the northern half of these counties, and, in the case of District 31, continuing over to Williamson County. Their landing was directed by the location of the protected majority-minority districts in southern Dallas and Harris Counties, which could not be disrupted. Use of this neutral guide was further supported by the circumstance that the Texas legislature has previously located new districts in the areas of greatest population growth.[11]

With a large part of the Texas map thus drawn, we looked to general historic locations of districts in the state, such as the districts in the Panhandle and the northeast corner of the state, the north central districts of the Red River area,[12] through the metropolitan districts and the central plains. We then drew in the remaining

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See, e.g., Johnson v. Miller, 922 F. Supp. 1556, 1563 (S.D. Ga. 1995), (discussing the decision to place Georgia's additional congressional district in high population growth area near Atlanta), *aff'd sub nom., Abrams v. Johnson*, 521 U.S. 74 (1997).

[11] *See Bush v. Vera*, 517 U.S. 952, 1003 (1996) (Stevens, J., dissenting) ("Because Texas' growth was concentrated in south Texas and the cities of Dallas and Houston, the state legislature concluded that the new congressional districts should be carved out of existing districts in those areas.").

[12] *Cf. Johnson*, 922 F. Supp. at 1565 (discussing Georgia's tradition of having four "corner districts" in its congressional plans).

districts throughout the state, emphasizing compactness, while observing the contiguity requirement.[13] We struggled to follow local political boundaries that historically have defined communities – county and city lines.[14] In the vernacular, "splits" of counties and cities in our drawing had to be a product of our neutral standards and the demands of population equality. We eschewed an effort to treat old lines as an independent locator, an effort that, in any event, would be frustrated by the population changes in the last decade. Nonetheless, the districts fell to their long-held areas, a natural result of the process we have described, much the same as the map drawn at our request by the State using Dr. Alford's neutral approach.

As we have explained, in our efforts to avoid splitting counties and cities, and in particular "double splits," or simultaneously moving populations in and out of a county between two districts, we also strove for compactness and contiguity. Doing so did much to end most of

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[13] *See Good v. Austin*, 800 F. Supp. 557, 563 (E.D. Mich. & W.D. Mich. 1992) ("In addition to serving as a check on gerrymandering compactness 'facilitates political organization, electoral campaigning, and constituent representation.' " (quoting *Karcher v. Daggett*, 462 U.S. 725, 756 (1983) (Stevens, J., concurring))).

[14] *See Karcher*, 462 U.S. at 758 (Stevens, J., concurring) ("Subdivision boundaries tend to remain stable over time. Residents of political units such as townships, cities, and counties often develop a community of interest, particularly when the subdivision plays an important role in the provision of governmental services. In addition, legislative districts that do not cross subdivision boundaries are administratively convenient and less likely to confuse the voters." (footnote omitted)).

the below-the-surface "ripples" of the 1991 plan and the myriad of submissions before us. For example, the patently irrational shapes of Districts 5 and 6 under the 1991 plan, widely-cited as the most extreme but successful gerrymandering in the country, are no more.

As a check against the outcome of our neutral principles, we asked if the resulting plan was avoidably detrimental to Members of Congress of either party holding unique, major leadership posts. We looked at three Democrats and three Republicans, consensus members of this limited group, each with substantial leadership positions in the Congress. It was plain that these Members were not harmed in their reelection prospects by this plan and that, indeed, no incumbent was paired with another incumbent or significantly harmed by the plan. We thus considered no change in our map in response to this inquiry. Doubtlessly some may see any such weighting as an incumbency factor since congressional leadership so directly correlates with seniority. This view is not without force. Nonetheless, three circumstances must also be considered. First, this correlation is no longer so complete. Second, it does not here offer purchase to one political party over another. And, finally, it reflects a traditional state interest in the power of its congressional delegation distinct from partisan affiliation.

Finally, we checked our plan against the test of general partisan outcome, comparing the number of districts leaning in favor of each party based on prior election results against the percentage breakdown statewide of votes cast for each party in congressional races. This is a

traditional last check upon the rationality of any congressional redistricting plan,[15] widely relied-upon by political scientists to test plans, if only in an approximating manner. We found that the plan is likely to produce a congressional delegation roughly proportional to the party voting breakdown across the state. It must be understood that any plan necessarily begins with a Democratic bias due to the preservation of protected majority-minority districts, all of which contain a high percentage of Democratic voters.

III

Various parties urged us to create both African-American and Latino minority districts. These districts are not required by law, as discussed in more detail below, but could be created by the State so long as race was not a predominant reason for doing so. Whether to do so is, however, a quintessentially legislative decision, implicating important policy concerns.[16] We did not avoid creating such a district. At the same time, we did not depart from our neutral factors to draw any district not required by law. To do so would render our effort to keep our thumb off the political scale an illusion.[17]

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[15] *See, e.g. Good*, 800 F. Supp. at 566-67 (using partisan fairness to assess plan drawn according to neutral principles).

[16] *See Wyche v. Madison Parish Police Jury*, 635 F.2d 1151, 1160 (5th Cir. Unit A Feb. 1981).

[17] *Cf. Abrams*, 521 U.S. at 88.

IV

Finally, to state directly what is implicit in all that we have said: political gerrymandering, a purely partisan exercise, is inappropriate for a federal court drawing a congressional redistricting map.[18] Even at the hands of a legislative body, political gerrymandering is much a bloodfeud, in which revenge is exacted by the majority against its rival. We have left it to the political arena, as we must and wisely should. We do so because our role is limited and not because we see gerrymandering as other than what it is: an abuse of power that, at its core, evinces a fundamental distrust of voters, serving the self-interest of the political parties at the expense of the public good.

V

The parties represented competing plans for redistricting the Congressional seats. We have passed by the approach by which these plans were created in favor of the approach we have described, which we found to be mandated by our position as a federal court engaging in our "delicate task with limited legislative guidance."[19]

Several parties raise Voting Rights Act arguments in support of their preferred plans. In drawing our plan, we

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[18] *See Hunt v. Cromartie*, 526 U.S. 541, 551 (1999); *see generally Davis v. Bandemer*, 478 U.S. 109, 117 n.6 (1986) (plurality opinion of White, J.); *cf. Wyche v. Madison Parish Police Jury*, 769 F.2d 265, 268 (5th Cir. 1985) ("Many factors, such as the protection of incumbents, that are appropriate in the legislative development of an apportionment plan have no place in a plan formulated by the courts.").

[19] *Abrams*, 521 U.S. at 101.

have endeavored to ensure that the plan complies with the goals of sections 2[20] and 5[21] of the Voting Rights Act.[22]

Our plan works no retrogression. We have maintained intact the existing districts, and, to the extent the boundaries have changed, as we "zeroed out" the plan, the minority populations have been either enhanced or not diminished in any meaningful way (*i.e.*, by mere fractions of percentages). Thus, although the minority populations in Districts 15, 16, and 30 represent a slightly smaller, but still overwhelming, percentage of the total populations of those districts as compared with the baseline 1991 plan as modified in 1996, we find that these changes do not result in "a retrogression in the position of racial minorities with respect to their effective exercise of the electoral franchise."[23]

The Balderas plaintiffs argue that the congressional plan must contain seven Latino registration majority districts, within nine Latino voting age majority districts, to avoid a section 2 violation. The Martinez intervenors specifically argue for a Latino opportunity district in Dallas County to maintain compliance with section 2. Many parties, including the Texas Coalition of Black Democrats, argue for an African-American opportunity

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[20] 42 U.S.C. § 1973.

[21] 42 U.S.C. § 1973c.

[22] *See Abrams*, 521 U.S. at 90, 96.

[23] *Beer v. United States*, 425 U.S. 130, 141 (1976); *see also Abrams*, 521 U.S. at 95; *Reno v. Bossier Parish Sch. Bd.*, 520 U.S. 471, 478 (1997).

district, generally labeled District 25, in Fort Bend and Harris Counties.

The Latino and African-American plaintiffs thus present competing positions, reflecting a political reality that they are competitors in the political process.[24] This competition finds expression in an absence of cohesive voting between Latinos and African-Americans at the point in which it is meaningfully measured, the Democratic primaries.

We find that the plaintiffs have failed to prove that vote dilution will occur in violation of section 2 of the Voting Rights Act in the absence of seven Latino citizenship majority congressional districts or an African-American opportunity district, proposed District 25, in Fort Bend and Harris Counties. The evidence did not persuade us that either Latino or African-American voting age populations are sufficiently numerous to form voting age population majorities in effective districts.[25] The plaintiffs have also not proved that Latinos and African-Americans vote cohesively as required by *Thornburg v. Gingles*[26] so as to constitute a majority in a single-member district.[27]

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[24] Several political scientists alluded to this political reality in their testimony.

[25] *See Valdespino v. Alamo Heights Indep. Sch. Dist.*, 168 F.3d 848, 852-53 (5th Cir. 1999).

[26] 478 U.S. 30, 50-51 (1986).

[27] *See Valdespino*, 168 F.3d at 852-53.

Looking first to the proposed African-American opportunity district, the Texas Coalition of Black Democrats has conceded that the evidence showed that African-Americans would not be an absolute majority of citizen voting age population in the proposed District 25. Again, the plaintiffs were unable to prove cohesive voting between Latinos and African-Americans sufficient to compel the drawing of a district in Fort Bend and Harris Counties.[28] The overwhelming evidence found to be persuasive was to the contrary.

The matter of creating such a permissive district is one for the legislature.[29] As we have explained, such an effort would require that we abandon our quest for neutrality in favor of a raw political choice. We offer no opinion as to the wisdom of an appropriate body doing so. Such arranging of voting presents a large and complex decision with profound social and political consequences. The Congress has by its enactment of voting rights laws constrained the political process and given the courts a role – to the extent of those constraints. We have no warrant to impose our vision of "proper" restraints upon the political process beyond the constraints imposed by the Constitution or the Voting Rights Act. The Supreme Court put it succinctly in *Growe*, stating that, where there

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[28] *See Growe*, 507 U.S. at 41.

[29] *See Johnson*, 922 F. Supp. at 1567 ("Since political considerations pervade the redistricting task, the Court feels that any permanent footprint left on Georgia's political landscape . . . should be left to those elected to make such decisions.").

has been no showing establishing the "three *Gingles* prerequisites," then under section 2 of the Voting Rights Act "there neither has been a wrong nor can be a remedy."[30] A month later, the court stated even more directly that, "[o]f course, the federal courts may not order the creation of majority-minority districts unless necessary to remedy a violation of federal law."[31]

In sum, these arguments so ably presented by Morris Overstreet, African-American attorney and former state official and candidate for elective office, and others are directed to the wrong forum, however much we may personally admire the arguments. It bears mention that our plan has hardly left a bleak terrain. In District 25 of our plan, the combined African-American and Latino voting age population increased to a 52.3 majority. In the practical world, this percentage will dominate the Democratic primary in a district that has consistently elected a Democratic congressman. This is, then, in a real sense, a minority district produced by our process that enhances the elective prospects of a minority, albeit not wholly the district sought.

As for the proposed Latino opportunity districts, the evidence shows that the Latino population is not sufficiently compact or numerous to support another, effective majority Latino citizenship district in Texas, in Dallas County or in South Texas.[32] We find that, under the

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[30] 507 U.S. at 41.

[31] *Voinovich v. Quilter*, 507 U.S. 146, 156 (1993).

[32] *See Growe*, 507 U.S. at 39-40; *Gingles*, 478 U.S. at 50-51; *NAACP v. Fordice*, 252 F.3d 361, 365-67 (5th Cir. 2001).

totality of the circumstances, the failure to create seven such districts will not prevent full and equal Latino participation in the political process. It bears mention that our insistence upon compactness has increased the Latino force in District 24, a result supported by Congresswoman Eddie Bernice Johnson in her testimony at trial.

The Valdez-Cox plaintiffs also urge that Webb and Hidalgo Counties be left whole. We heard powerful arguments from the witness stand and counsel in opposition to a splitting of Hidalgo County in South Texas, and our neutral standards stood against such a county split. That standard was ultimately overridden as to Hidalgo County by the mandate of population equality under the principle of one-man, one-vote, and the existence of surrounding protected majority-minority districts. It is an ugly fact that the law's insistence on absolute population equality in court-drawn plans has the perverse effect of splitting counties and cities, when a tolerance of greater deviation would not demand such undesirable divisions. The split here of Hidalgo County is a fit example.[33] Webb County was not caught in this squeeze and remains wholly intact in District 23.

VI

There being no reason for delay, we direct entry of final judgment in this case pursuant to Federal Rule of Civil Procedure 54(b).

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[33] We endeavored to and did respect the municipal boundaries of McAllen, a major population center of Hidalgo County.

So **ordered** and **signed** this 14th day of November, 2001.

/s/ Patrick E. Higginbotham
PATRICK E. HIGGINBOTHAM
UNITED STATES CIRCUIT JUDGE

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
UNITED STATES DISTRICT JUDGE

/s/ T. John Ward
T. JOHN WARD
UNITED STATES DISTRICT JUDGE

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	
Vs.	§	NO. 6:01CV158
	§	
STATE OF TEXAS, ET AL.	§	

This filing applies to: All actions

FINAL JUDGMENT

(Filed Nov. 14, 2001)

On the 22d day of October, the above referenced civil action came on for trial. The court heard evidence and argument and considered the parties' post-trial briefing. For the reasons expressed in the court's *per curiam* decision issued today, the court renders judgment declaring that the existing congressional districts in the State of Texas are unconstitutionally malapportioned and adopting Plan 1151C as the remedial congressional redistricting plan for the State of Texas.

The Texas Legislative Council's statistical package for Plan 1151 C is attached as Exhibit A to this judgment and is incorporated by reference. The maps associated with Plan 1151C are attached as Exhibit B to this judgment and are incorporated by reference.

All relief not granted is denied. Costs of court are taxed against the State of Texas.

So ORDERED and SIGNED this 14th day of November, 2001.

/s/ Patrick E. Higginbotham
PATRICK E. HIGGINBOTHAM
UNITED STATES CIRCUIT JUDGE

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
UNITED STATES DISTRICT JUDGE

/s/ T. John Ward
T. JOHN WARD
UNITED STATES DISTRICT JUDGE

IN THE UNITED STATES DISTRICT COURT FOR THE
EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, GILBERTO Z. TORRES and TEXAS LULAC, Plaintiffs, vs. STATE OF TEXAS; RICK PERRY, in his official capacity as Governor of the State of Texas; BILL RATLIFF, in his official capacity as Acting Lieutenant Governor of Texas; JAMES "PETE" LANEY, in his official capacity as Speaker of the Texas House of Representatives; GEOFFREY S. CONNOR in his official capacity as Acting Secretary of State for the State of Texas; MOLLY BETH MALCOLM, in her official Capacity as Chair of the Texas Democratic Party, SUSAN WEDDINGTON, in her official capacity as Chair of the Texas Republican Party; JOHN CORNYN, in his official capacity as a member of the Texas Legislative Redistricting Board; Defendant CAROL KEATON RYLANDER, in her official capacity as a member of the Texas Legislative Redistricting Board; Defendant DAVID DEWHURST, in his official capacity as a member of the Texas Legislative Redistricting Board, Defendants.	§	CIVIL ACTION NO. 6:01-CV158 (Filed Dec. 14, 2001)

NOTICE OF APPEAL

Notice is hereby given that Simon Balderas, Gerald Torres and the Texas League of United Latin American Citizens, plaintiffs in the above named case, hereby appeal to the United States Supreme Court, pursuant to 28 U.S.C. § 1253, from the order and judgement adopting a congressional redistricting plan for the State of Texas entered in this action on the 14th day of November, 2001 and the order and judgement affirming the Texas Senate redistricting plan entered in this action on the 28th day of November, 2001.

DATED: December 13, 2001

Respectfully submitted,

By: /s/ Nina Perales
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[Certificate Of Service Omitted In Printing]

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	CIVIL ACTION
vs.	§	NO. 6:01CV158
STATE OF TEXAS, ET AL.	§	

This Filing Applies to: All Actions

Before HIGGINBOTHAM, Circuit Judge, HANNAH and WARD, District Judges.

(Filed November 28, 2001)

PER CURIAM:

This phase of the case involves the redistricting of the Texas State Senate following the 2000 census. Following the failure of the state legislature to implement a redistricting plan for the Senate, the Legislative Redistricting Board adopted a plan on July 24, 2001, to redistrict the 31 Senate seats.[1] Because Texas is a "covered" jurisdiction under section 5 of the Voting Rights Act, the State then submitted this plan to the United States Department of Justice for preclearance.[2] On October 15, 2001, the United States Department of Justice informed the Texas Secretary of State that the LRB Senate plan, known as 1188S, had been precleared pursuant to section 5 of the Voting Rights Act. This three-judge court then heard evidence on November 5 and 6, 2001, supplementing the evidence taken at the congressional redistricting

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[1] *See* Tex. Const. art. III, § 28.

[2] *See* 42 U.S.C. § 1973c.

trial and challenging the legality of the LRB Senate plan, 1188S, under the Equal Protection Clause and the Voting Rights Act. We will first describe the course of this litigation and then address the parties' challenges to the LRB Senate plan. We repeat in part our description in our opinion adopting a congressional redistricting plan.[3]

I

Voters and various officeholders filed multiple lawsuits in state and federal court challenging the districting of Texas' congressional seats and both houses of the state legislature based on the 2000 census.[4] The federal cases were consolidated into the earliest-filed federal action, *Balderas v. Texas*, No. 6:01-CV-158, before this three-judge court.[5]

The Texas Constitution requires that the Texas legislature, "at its first regular session after the publication of each United States decennial census, apportion the state

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[3] We filed a plan for congressional districts with an opinion on November 14, 2001. We directed entry of a final judgment on those claims at that time.

[4] *Balderas v. Texas*, Civil No. 6:01-CV-158 (E.D. Tex.); *Mayfield v. Texas*, Civil No. 6:01-CV-218 (E.D. Tex.); *Manley v. Texas*, Civil No. 6:01-CV-231 (E.D. Tex.); *Del Rio v. Perry*, No. GN-003665 (353rd Dist. Ct., Travis County, Tex.); *Cotera v. Perry*, No. GN-101660 (353rd Dist. Ct., Travis County, Tex.); *Connolly v. Perry*, No. GN-102250 (98th Dist. Ct., Travis County, Tex.); *Associated Republicans of Texas v. Cuellar*, No. 2001-26894 (281st Dist. Ct., Harris County, Tex.); *Rivas v. Cuellar*, No.2001-33760 (152nd Dist. Ct., Harris County, Tex.).

[5] Other three-judge courts had dismissed prior suits filed prematurely.

into senatorial and representative districts."[6] The Constitution also provides that, "[i]n the event the Legislature shall at any such first regular session following the publication of a United States decennial census, fail to make such apportionment, same shall be done by the Legislative Redistricting Board of Texas," which is "composed of five (5) members, as follows: The Lieutenant Governor, the Speaker of the House of Representatives, the Attorney General, the Comptroller of Public Accounts and the Commissioner of the General Land Office."[7] In May 2001, the 77th Legislature adjourned *sine die* without enacting Senate and House redistricting plans and so the LRB convened and adopted Senate and House redistricting plans on July 24, 2001. Under state law, these plans, "executed and filed with the Secretary of State, shall have force and effect of law."[8]

Pursuant to the Supreme Court's direction in *Growe v. Emison*,[9] on July 23, 2001 we deferred proceedings in federal court until October 1, 2001. Proceedings on the congressional redistricting concluded on November 2, 2001 and our order issued on November 14, 2001.

After a pre-trial conference on November 2, 2001, trial on the Senate plan commenced on November 5, concluding with arguments on November 6. Post-trial briefs were submitted on November 9, 2001. After reviewing the evidence and the parties' submissions, we

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[6] Tex. Const. art. III, § 28.

[7] *Id.*

[8] *Id.*

[9] 507 U.S. 25 (1993).

now turn to our decision on the challenges presented to the state Senate redistricting plan adopted by the LRB and precleared by the Justice Department.

II

Federal courts have a limited role in considering challenges to precleared legislatively-adopted redistricting plans.[10] The Supreme Court has made clear that "[a] State should be given the opportunity to make its own redistricting decisions so long as that is practically possible and the State chooses to take the opportunity," and, "[w]hen it does take the opportunity, the discretion of the federal court is limited except to the extent that the plan itself runs afoul of federal law."[11] We may reject the State's apportionment plan only insofar as it is deficient as a matter of federal law and may only act remedially to correct any such deficiency.[12]

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[10] *See, e.g., Voinovich v. Quilter*, 507 U.S. 146, 156 (1993).

[11] *Lawyer v. Dep't of Justice*, 521 U.S. 567, 576-77 (1997); *see also Upham v. Seamon*, 456 U.S. 37, 40 (1982) (per curiam) (holding that a three-judge court cannot "simply substitute[ ] its own reapportionment preferences for those of the state legislature").

[12] *Cook v. Luckett*, 735 F.2d 912, 919 (5th Cir. 1984); *see also Voinovich*, 507 U.S. at 156 ("[T]he federal courts may not order the creation of majority-minority districts unless necessary to remedy a violation of federal law.").

To the extent the plaintiffs raise claims that ask that this court enforce state law against the State, they are barred by the Eleventh Amendment, and this court has no jurisdiction to hear them, whether for injunctive or for declaratory relief. *See Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 106, 121 (1984); *Watson v. Texas*, 261 F.3d 436, 440-41 (5th Cir. 2001); *Earles*

III

The parties presented competing plans for redistricting the Senate seats, but, as we have explained, our task is simply to evaluate whether the precleared LRB Senate plan runs afoul of the statutory and constitutional law, specifically the Equal Protection Clause of the Fourteenth Amendment and sections 2[13] and 5[14] of the Voting Rights Act.

A

Several plaintiffs urge that the LRB plan violates the Voting Rights Act. The Balderas plaintiffs argue that section 2 of the Voting Rights Act requires that we draw in a seventh Latino citizenship majority district in South Texas. The Valdez-Cox plaintiffs argue that a Latino majority district should be created in Dallas and Tarrant Counties. The Mayfield plaintiffs challenge the LRB plan's Senate districts in Dallas, Harris, Tarrant, and Jefferson Counties, seemingly arguing for the creation of minority "influence" districts under section 2 of the Voting Rights Act. The Mayfield plaintiffs also argue that the LRB plan impermissibly "packs" existing majority-minority districts at the expense of neighboring minority districts with less than a majority-minority population. Amicus curiae Texas NAACP argues for a third African-

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v. State Bd. of Certified Public Accountants of La., 139 F.3d 1033, 1039-40 (5th Cir. 1998); *Hays County Guardian v. Supple*, 969 F.2d 111, 125 (5th Cir. 1992).

[13] 42 U.S.C. § 1973.

[14] 42 U.S.C. § 1973c.

American opportunity district in Harris County and argues that the LRB Senate plan dilutes minorities in certain "influence districts," 4, 12, and 15.

Looking first to the Balderas and Valdez-Cox plaintiffs' claims, we must reject these claims for reasons substantially similar to those given in our decision in the congressional redistricting case. The record before us demonstrates that the Latino population is not sufficiently compact or numerous to support another, effective majority Latino citizenship district in Dallas and Tarrant Counties or in South Texas.[15] We further find that, under the totality of the circumstances, the failure to create a seventh Latino majority district will not prevent full and equal Latino participation in the political process. Rather, creating such a district would risk giving rise to retrogression in the existing Latino majority districts. We conclude that the [sic] these plaintiffs have failed to prove that section 2 of the Voting Rights Act requires any correction to the LRB Senate plan based on allegations of Latino vote dilution.

To the extent the Mayfield plaintiffs and amicus curiae Texas NAACP invite us to recognize and sustain a challenge to the LRB plan based on minority "influence districts," we have no warrant to do so.[16]

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[15] *See Growe*, 507 U.S. at 39-40; *Thornburgh* [sic] *v. Gingles*, 478 U.S. 30, 50-51 (1986); *NAACP v. Fordice*, 252 F.3d 361, 365-67 (5th Cir. 2001).

[16] *See Valdespino v. Alamo Heights Indep. Sch. Dist.*, 168 F.3d 848, 852-53 (5th Cir. 1999); *see also Johnson v. De Grandy*, 512 U.S. 997, 1008-09 (1994) (declining to decide whether "influence district" claims are cognizable under section 2 and citing three prior cases in which the Court similarly declined to so decide).

Texas NAACP has similarly failed to identify in the record a violation of Section 2 of the Voting Rights Act so as to compel the creation by this court of an African-American opportunity district in Harris County. The new minority opportunity districts in the Texas NAACP's proposed Plan 1219S, District 12 in Dallas and Tarrant Counties and District 15 in Fort Bend and Harris Counties, rely on supposed coalitions of Latino and African-American populations to achieve majority-minority populations. Amicus points to suggestions that Latinos and African-Americans have voted cohesively in certain Democratic primaries. The evidence before us, however, does not persuade us that Latinos and African-Americans vote cohesively as required by *Thornburg v. Gingles*[17] so as to constitute a majority in a single-member district.[18]

We are also not persuaded by the Mayfield plaintiffs' packing claims. The addition of minority, particularly Latino, populations to several districts was necessitated by the one-man, one-vote requirement and non-retrogression concerns pursuant to section 5 of the Voting Rights Act. To the extent minority populations were added to majority-minority districts under the LRB plan, such as the movement of Latinos from El Paso County between former District 29 and new District 19, the evidence demonstrates that these shifts in population were in keeping with the demands of the Equal Protection Clause and the Voting Rights Act.

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[17] 478 U.S. 30, 50-51 (1986).

[18] *See Growe*, 507 U.S. at 41; *Valdespino*, 168 F.3d at 852-53.

To the extent that we have jurisdiction to do so we find that there is no retrogression in violation of section 5 of the Voting Rights Act in the LRB Senate plan. As we have noted, the Justice Department has precleared the LRB plan.

B

The Mayfield plaintiffs argue that the LRB plan is unconstitutional because its population deviation violates the Equal Protection Clause. We note first that the LRB plan presents a total deviation under ten percent. As such, the plaintiffs cannot establish a *prima facie* case of vote dilution in violation of Equal Protection Clause, and the State is not required to justify minor variations in various districts from the ideal Senate district population.[19]

The Mayfield plaintiffs, in attempting to meet their burden of proof, contend that the LRB plan is unconstitutional under *Roman v. Sincock*[20] because it is not "free from any taint of arbitrariness or discrimination."[21]

Showing only that smaller population deviations were possible is insufficient to prove a violation of the Equal Protection Clause.[22] We cannot say that this plan, which satisfies the Voting Rights Act and contains less than 10% total deviation is so without reason as to violate

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[19] *Chen v. City of Houston*, 206 F.3d 502, 522 (5th Cir. 2000).

[20] 377 U.S. 695 (1964).

[21] *Id.* at 710.

[22] *See id.* at 1221 [sic] (citing authorities).

the Equal Protection Clause. It is plainly the product of partisan line-drawing.

C

The Valdez-Cox plaintiffs also urge that Hidalgo County and particularly the City of McAllen be left whole in contrast to the LRB Senate plan, which splits Hidalgo and McAllen between Districts 20 and 27. They argue that splitting these political subdivisions violates the narrowly-tailored approach mandated by Supreme Court case law dealing with court-ordered plans or modifications targeted at correcting Voting Rights Act or constitution violations.[23] The LRB plan, however, is not a court-ordered remedial plan, so these arguments are inapposite. On the evidence presented, the splitting of Hidalgo County in the LRB plan does not violate the Voting Rights Act. Whether the decision to split Hidalgo County is wise or unwise as a matter of legislative policy is not for us to say.

D

The Mayfield plaintiffs also urge a federal due process challenge to the LRB plan. They have not briefed this matter in their post-trial briefs, but argued at trial that the violation arises from the LRB's failure to follow its own guidelines in adopting its plan. This issue has not been preserved and, in any event, our reading of the

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[23] *See Upham*, 456 U.S. at 43; *Whitcomb v. Chavis*, 403 U.S. 124, 160-61 (1973).

guidelines and the proceedings before the LRB disclose no due process violation.

E

Various parties argue that certain districts, in particular Senate District 17, are unconstitutional as purposeful racial discrimination in violation of the Equal Protection Clause. We find no such violation. As one of the political scientists testified, "it isn't pretty," it's just political gerrymandering.

IV

We conclude that there is no meritorious challenge, based on federal constitutional or statutory law to the LRB Senate plan, 1188S, nor any state law challenge over which this three-judge court has jurisdiction. As such, we hold that 1188S, as enacted into law by the LRB, governs state Senate apportionment for the State of Texas following the 2000 census. There being no reason for delay, we direct entry of final judgment in this case pursuant to Federal Rule of Civil Procedure 54(b).

Each member of this panel joins in this ruling but reserves the right to express more fully their separate views in a later opinion.

So **ordered** and **signed** this 28th day of November, 2001.

/s/ Patrick E. Higginbotham
PATRICK E. HIGGINBOTHAM
UNITED STATES CIRCUIT JUDGE

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
UNITED STATES DISTRICT JUDGE

/s/ T. John Ward
T. JOHN WARD
UNITED STATES DISTRICT JUDGE

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	CIVIL ACTION
vs.	§	NO. 6:01CV158
STATE OF TEXAS, ET AL.	§	
This Filing Applies to: All Actions		

FINAL JUDGMENT

(Filed November 28, 2001)

On the 5th day of November, the above referenced civil action came on for trial. The court heard evidence and argument and considered the parties' post-trial briefing. For the reasons expressed in the court's *per curiam* decision issued today, the court renders judgment for the State of Texas and affirm [sic] that Plan 1188S is the legal Senate districting plan for the State of Texas.

All relief not granted is denied. Costs of court are taxed against the State of Texas.

So **ordered** and **signed** this 28th day of November, 2001.

/s/ Patrick E. Higginbotham
PATRICK E. HIGGINBOTHAM
UNITED STATES CIRCUIT JUDGE

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
UNITED STATES DISTRICT JUDGE

/s/ T. John Ward
T. JOHN WARD
UNITED STATES DISTRICT JUDGE

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	CIVIL ACTION
VS.	§	NO. 6:01 CV 158
	§	
STATE OF TEXAS, ET AL.	§	(Filed Nov. 30, 2001)

This Filing Applies to: All Actions

JOHN HANNAH, JR., Chief District Judge, having concurred in the judgment, writes further.

I have concurred with the legal conclusion reached by my brethren in regard to the House and Senate Redistricting Plan. I write separately to express my shock at the drawing of districts by the State of Texas. The dominant political party treated all members of the opposing party as if they were "enemies of the State" instead of respected state leaders, many with a great wealth of governmental knowledge and ability that has and could inure to the benefit of Texas.

The State has obviously ignored traditional redistricting principles in favor of political expediency. The State's lack of respect for political subdivisions is evident. Two examples from the State's Senate Plan will suffice although many examples from the House and Senate Plan could be cited.

El Paso County's population according to the 2000 Census is 679,622. The population figure for an ideal senate district is 672,639. A respect for political subdivisions would suggest making El Paso County into a single

senatorial district. However, the State unnecessarily splits El Paso County into Districts 29 and 19. It places the residents of southern El Paso County in District 19 along with 335,367 persons from Bexar County, hundreds of miles away and of a different community of interest.

Even more offensive is Senate District 17, a district described even by the State's own expert witness as weird, odd and bizarre. Stretching over 180 miles from University Park in Harris County to the Louisiana border, it is barely a mile wide in spots, and requires travel by boat to meet the standards of contiguity. Starting in University Park and Bellaire, in Harris County, Anglo enclaves within the borders of the City of Houston, it snakes west through a narrow corridor to another Anglo enclave of middle and upper middle class homes in the western suburbs of Houston, out to the edge of Anglo Katy. It wends its way south into another exclusive Anglo stronghold in the First Colony area of Fort Bend County, carefully avoiding the sections of Black population in bordering Missouri City while retaining the Anglo populations of Missouri City. After wending its way south through the Anglo portions of Fort Bend County, it reaches into Brazoria County. It then veers northeast along a narrow strip of Galveston County, taking in the Anglo community of Jamaica Beach and a narrow part of the City of Galveston which borders the beach, but draws its line at the neighborhood of Galveston which contain a large Black population. The district continues its northeast direction along the coast of Chambers County, where its main inhabitants are the birds in the Anahuac National Wildlife Refuge, the population maps showing zero for human inhabitants in District 17's section of

Chambers County. Travel from the Galveston portion of this district into the Chambers County portion of this district, if eschewing a route into District 4, requires a trip on the Bolivar Ferry onto the Bolivar Peninsula. The District ends in Jefferson County, at the border of Louisiana. In Jefferson County, it splits the community of Port Arthur from its suburbs and, more importantly from Beaumont. The district lines show a careful encompassment of the small black community within Port Arthur while rejecting the larger Black bordering community of Beaumont.

Examining District 17, referred to in the trial of this case as the "fish hook," we note its extremely irregularity on its face and deplore the State's rejection of traditional redistricting principles such as compactness, respect for political subdivisions, and community of interests. 6 county lines are split by this district and no whole county is included. Further, District 17 splits 17 or 18 towns and cities in its meander through the coastal plane of southeastern Texas.

The evidence concerning the lack of regard for traditional communities of interest was compelling. Jefferson County residents testified that they are often adverse to residents of Harris County on issues of air pollution and water rights and that the working class communities of Jefferson County have nothing in common with the middle and upper middle class suburbs of Houston or with exclusive University Park. There was testimony that Jefferson County has been wholly within one senate district for the last 168 years.

Further, evidence showed that District 17 as it now stands, was introduced by a last minute amendment, and voted on by the Legislative Redristricting Board over the strong objection of Lieutenant Governor Ratliff who deplored the lack of fairness inherent in voting on an amendment which the public had not have [sic] a chance to see.

All this being said, the federal courts have a limited role in considering challenges to precleared, legislatively-adopted redistricting plans. We may not substitute our judgment for that of the Legislature, in this case, the Legislative Redistricting Board, unless we find that the plan runs afoul of federal law. The State may engage in political gerrymandering even if it "so happens that the most loyal Democrats happen to be black Democrats and even if the State were conscious of that fact."[1] However, I concur with the legal conclusion that plaintiffs have failed to meet their evidentiary burden of showing that the Texas Senate plan violates the Constitution or laws of the United States, as distasteful as portions of it may be.

SIGNED this 30th day of November, 2001.

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
Chief District Judge

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[1] *Hunt v. Cromartie*, 526 U.S. 541, 551 (1999).

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL.	§	
	§	NO. 6:01CV158
Vs.	§	
	§	
STATE OF TEXAS, ET AL.	§	

This filing applies to: All actions

AMENDED JUDGMENT

(Filed Jan. 18, 2002)

We grant the state's Rule 59 motion to amend judgment (#472) in part. We amend our final judgment in the Senate case (#460) to read as follows:

On the 5th day of November, 2001, the above-referenced civil action came on for trial. The court heard evidence and argument and considered the parties' post-trial briefing. For the reasons previously expressed in the court's *per curiam* decision, the court renders judgment for the State of Texas and affirms that Plan 1988 [sic] is the legal Senate districting plan for the State of Texas.

All relief not granted is denied. Costs of court are taxed against the party incurring same.

So Ordered and Signed this 18th day of January, 2002.

/s/ Patrick E. Higginbotham
PATRICK E. HIGGINBOTHAM
UNITED STATES CIRCUIT
JUDGE

/s/ John Hannah, Jr.
JOHN HANNAH, JR.
UNITED STATES DISTRICT
JUDGE

/s/ T. John Ward
T. JOHN WARD
UNITED STATES DISTRICT
JUDGE

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, GILBERTO Z. TORRES and TEXAS LULAC,	§	
Plaintiffs,	§	CIVIL ACTION
vs.	§	NO. 6:01-CV-158
STATE OF TEXAS; RICK PERRY, in his official capacity as Governor of the State of Texas; BILL RATLIFF, in his official capacity as Acting Lieutenant Governor of Texas; JAMES "PETE" LANEY, in his official capacity as Speaker of the Texas House of Representatives; GEOFFREY S. CONNOR in his official capacity as Acting Secretary of State for the State of Texas; MOLLY BETH MALCOLM, in her official Capacity as Chair of the Texas Democratic Party, SUSAN WEDDINGTON, in her official capacity as Chair of the Texas Republican Party; JOHN CORNYN, in his official capacity as a member of the Texas Legislative Redistricting Board; Defendant CAROL KEATON RYLANDER, in her official capacity as a member of the Texas Legislative Redistricting Board; Defendant DAVID DEWHURST, in his official capacity as member of the Texas Legislative Redistricting Board.	§	(Filed Feb. 1, 2002)
Defendants.	§	

PLAINTIFFS' AMENDED NOTICE OF APPEAL

Notice is hereby given that Simon Balderas, Gerald Torres and the Texas League of United Latin American Citizens, plaintiffs in the above named case, hereby appeal to the United States Supreme Court, pursuant to 28 U.S.C. § 1253, from the order and judgement adopting a congressional redistricting plan for the State of Texas entered in this action on the 14th day of November, 2001 and the amended judgement affirming the Texas Senate redistricting plan entered in this action on the 18th day of January, 2002.

DATED: January 29, 2002

Respectfully submitted,

By: /s/ Nina Perales
NINA PERALES
State Bar No. 24005046
Attorney-in-Charge

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and Educational Fund
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OF COUNSEL:
ALBERT H. KAUFFMAN

[Certificate Of Service Omitted In Printing]

42 U.S.C. § 1973. Denial or abridgement of right to vote on account of race or color through voting qualifications or prerequisites; establishment of violation

(a) No voting qualification or prerequisite to voting or standard, practice, or procedure shall be imposed or applied by any State or political subdivision in a manner which results in a denial or abridgement of the right of any citizen of the United States to vote on account of race or color, or in contravention of the guarantees set forth in section 1973b(f)(2) of this title, as provided in subsection (b) of this section.

(b) A violation of subsection (a) of this section is established if, based on the totality of circumstances, it is shown that the political processes leading to nomination or election in the State or political subdivision are not equally open to participation by members of a class of citizens protected by subsection (a) of this section in that its members have less opportunity than other members of the electorate to participate in the political process and to elect representatives of their choice. The extent to which members of a protected class have been elected to office in the State or political subdivision is one circumstance which may be considered: *Provided,* That nothing in this section establishes a right to have members of a protected class elected in numbers equal to their proportion in the population.

Federal Rule of Civil Procedures 52

FINDINGS BY THE COURT; JUDGMENT ON PARTIAL FINDINGS

(a) **Effect.** In all actions tried upon the facts without a jury or with an advisory jury, the court shall find the facts specially and state separately its conclusions of law thereon, and judgment shall be entered pursuant to Rule 58; and in granting or refusing interlocutory injunctions the court shall similarly set forth the findings of fact and conclusions of law which constitute the grounds of its action. Requests for findings are not necessary for purposes of review. Findings of fact, whether based on oral or documentary evidence, shall not be set aside unless clearly erroneous, and due regard shall be given to the opportunity of the trial court to judge of the credibility of the witnesses. The findings of a master, to the extent that the court adopts them, shall be considered as the findings of the court. It will be sufficient if the findings of fact and conclusions of law are stated orally and recorded in open court following the close of the evidence or appear in an opinion or memorandum of decision filed by the court. Findings of fact and conclusions of law are unnecessary on decisions of motions under Rule 12 or 56 or any other motion except as provided in subdivision (c) of this rule.

* * *

POPULATION AND GENERAL ELECTION HISTORY
CONGRESSIONAL DISTRICTS - PLAN 01123C

PLAN 01123C DIST		2000 CENSUS: DEVIATION		TOTAL POPULATION: TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	---VOTER REG--- TOTAL	%SPAN	----TURNOUT---- TOTAL	TO/VR	STATEWIDES** %DEM	%REP
1	Total	0	(0.00%)	651,619	476,557	116,838	49,191	165,155	9,907	73.1	17.9	7.5	25.3	1.5	2000	351,959	1.7	225,528	64.1%	39.2	60.8
	VAP			486,738	368,456	81,311	30,165	110,989	7,293	75.7	16.7	6.2	22.8	1.5	1998	346,553	1.4	148,174	42.8%	48.0	52.0
2	Total	0	(0.00%)	651,619	452,631	102,813	81,934	183,536	15,452	69.5	15.8	12.6	28.2	2.4	2000	334,789	4.4	216,692	64.7%	40.1	59.9
	VAP			493,947	356,913	71,678	54,029	125,023	12,011	72.3	14.5	10.9	25.3	2.4	1998	320,836	4.0	137,708	42.9%	48.2	51.8
	Total	0	(0.00%)	651,619	405,828	73,553	115,951	188,003	57,788	62.3	11.3	17.8	28.9	8.9	2000	310,330	6.2	208,097	67.1%	30.9	69.1
	VAP			463,246	301,793	47,170	73,719	120,144	41,309	65.1	10.2	15.9	25.9	8.9	1998	282,931	5.4	109,547	38.7%	28.7	71.3
4	Total	+ 12	(+0.00%)	651,631	522,841	51,757	55,376	106,491	22,299	80.2	7.9	8.5	16.3	3.4	2000	343,858	3.1	233,239	67.8%	27.1	72.9
	VAP			468,907	385,171	34,685	34,128	68,517	15,219	82.1	7.4	7.3	14.6	3.2	1998	304,968	2.7	129,204	42.4%	31.8	68.2
5	Total	0	(0.00%)	651,619	422,620	105,246	110,899	214,854	14,145	64.9	16.2	17.0	33.0	2.2	2000	321,206	6.4	203,315	63.3%	38.6	61.4
	VAP			476,821	326,380	71,711	69,069	140,188	10,253	68.4	15.0	14.5	29.4	2.2	1998	301,461	5.6	121,459	40.3%	41.4	58.6
6	Total	0	(0.00%)	651,619	448,846	69,324	89,449	157,247	45,526	68.9	10.6	13.7	24.1	7.0	2000	314,845	5.7	225,283	71.6%	30.9	69.1
	VAP			478,066	341,584	45,548	58,674	103,478	33,004	71.5	9.5	12.3	21.6	6.9	1998	298,257	5.1	118,299	39.7%	30.8	69.2
7	Total	0	(0.00%)	651,619	432,266	41,235	127,119	166,812	52,541	66.3	6.3	19.5	25.6	8.1	2000	335,277	8.2	244,428	72.9%	24.8	75.2
	VAP			473,800	326,414	27,168	83,149	109,475	37,911	68.9	5.7	17.5	23.1	8.0	1998	299,607	7.1	131,560	43.9%	23.6	76.4
8	Total	0	(0.00%)	651,619	520,021	37,561	72,659	109,457	22,141	79.8	5.8	11.2	16.8	3.4	2000	362,487	5.5	250,165	69.0%	22.7	77.3
	VAP			462,748	377,687	24,456	45,675	69,758	15,303	81.6	5.3	9.9	15.1	3.3	1998	322,768	4.9	129,787	40.2%	23.8	76.2
9	Total	0	(0.00%)	651,619	381,555	167,116	85,897	251,195	18,869	58.6	25.6	13.2	38.5	2.9	2000	344,371	6.3	226,577	65.8%	49.2	50.8
	VAP			472,030	291,352	113,252	55,089	167,377	13,301	61.7	24.0	11.7	35.5	2.8	1998	338,313	5.6	135,701	40.1%	56.1	43.9
10	Total	+ 1	(+0.00%)	651,620	322,726	77,222	215,689	289,774	39,120	49.5	11.9	33.1	44.5	6.0	2000	324,986	18.0	220,111	67.7%	53.7	46.3
	VAP			500,983	271,947	52,779	145,753	196,958	32,078	54.3	10.5	29.1	39.3	6.4	1998	285,851	17.5	126,955	44.4%	57.2	42.8
11	Total	-3	(0.00%)	651,616	416,411	103,218	114,644	214,628	20,577	63.9	15.8	17.6	32.9	3.2	2000	319,773	9.5	205,641	64.3%	35.6	64.4
	VAP			469,333	318,713	66,367	70,745	135,635	14,985	67.9	14.1	15.1	28.9	3.2	1998	293,848	9.0	120,211	40.9%	41.0	59.0

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.

Admitted into the trial record as Balderas Pl. Exh. 114 in the congressional phase of the case.
Request:14634

POPULATION AND GENERAL ELECTION HISTORY
CONGRESSIONAL DISTRICTS - PLAN 01123C

PLAN 01123C DIST		2000 CENSUS: DEVIATION		TOTAL POPULATION: TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	---VOTER REG--- TOTAL	%SPAN	----TURNOUT---- TOTAL	TO/VR	STATEWIDES** %DEM	%REP
12	Total	0	(0.00%)	651,619	419,040	66,433	145,601	210,191	22,388	64.3	10.2	22.3	32.3	3.4	2000	294,332	9.7	197,109	67.0%	38.1	61.9
	VAP			477,525	325,463	45,204	91,600	135,920	16,142	68.2	9.5	19.2	28.5	3.4	1998	279,904	8.8	116,224	41.5%	40.8	59.2
13	Total	+4	(+0.00%)	651,623	494,009	37,609	104,166	140,522	17,092	75.8	5.8	16.0	21.6	2.6	2000	347,952	7.3	221,957	63.8%	30.6	69.4
	VAP			479,588	378,407	26,162	63,262	88,935	12,246	78.9	5.5	13.2	18.5	2.6	1998	335,502	6.6	149,202	44.5%	38.8	61.2
14	Total	+2	(+0.00%)	651,621	420,536	64,521	139,493	202,494	28,591	64.5	9.9	21.4	31.1	4.4	2000	356,231	12.4	264,682	74.3%	35.7	64.3
	VAP			469,907	316,524	44,221	89,446	133,040	20,343	67.4	9.4	19.0	28.3	4.3	1998	329,242	12.0	132,134	40.1%	38.3	61.7
15	Total	-3	(0.00%)	651,616	172,543	20,590	450,881	469,738	9,335	26.5	3.2	69.2	72.1	1.4	2000	315,386	55.0	164,595	52.2%	52.0	48.0
	VAP			445,737	136,497	14,852	288,729	302,765	6,475	30.6	3.3	64.8	67.9	1.5	1998	299,106	53.8	96,916	32.4%	54.9	45.1
16	Total	0	(0.00%)	651,619	113,852	23,204	505,582	525,530	12,237	17.5	3.6	77.6	80.6	1.9	2000	295,654	64.7	144,571	48.9%	57.0	43.0
	VAP			445,452	90,129	15,042	332,699	346,304	9,019	20.2	3.4	74.7	77.7	2.0	1998	270,617	63.4	91,247	33.7%	60.3	39.7
17	Total	+3	(+0.00%)	651,622	490,085	24,864	126,528	150,092	11,445	75.2	3.8	19.4	23.0	1.8	2000	359,853	10.9	240,919	66.9%	28.5	71.5
	VAP			489,160	384,884	16,817	79,564	95,881	8,395	78.7	3.4	16.3	19.6	1.7	1998	342,337	10.4	167,591	49.0%	36.8	63.2
18	Total	0	(0.00%)	651,619	137,159	296,483	192,124	485,049	29,411	21.0	45.5	29.5	74.4	4.5	2000	307,434	10.8	188,619	61.4%	71.6	28.4
	VAP			467,015	117,155	206,252	123,198	327,528	22,332	25.1	44.2	26.4	70.1	4.8	1998	300,481	9.4	112,351	37.4%	72.8	27.2
19	Total	-2	(0.00%)	651,617	421,865	32,875	186,089	217,468	12,284	64.7	5.0	28.6	33.4	1.9	2000	346,674	18.5	217,852	62.8%	23.8	76.2
	VAP			471,863	326,921	21,301	115,080	135,837	9,105	69.3	4.5	24.4	28.8	1.9	1998	335,851	17.3	148,649	44.3%	29.8	70.2
20	Total	0	(0.00%)	651,619	195,596	37,668	402,464	436,803	19,220	30.0	5.8	61.8	67.0	2.9	2000	326,735	51.7	177,725	54.4%	50.0	50.0
	VAP			472,615	159,352	26,042	274,092	298,635	14,628	33.7	5.5	58.0	63.2	3.1	1998	305,670	50.5	97,497	31.9%	50.6	49.4
	Total	0	(0.00%)	651,619	507,811	19,513	98,007	116,505	27,303	77.9	3.0	15.0	17.9	4.2	2000	408,101	9.9	304,279	74.6%	27.4	72.6
	VAP			475,896	379,253	12,729	65,273	77,537	19,106	79.7	2.7	13.7	16.3	4.0	1998	351,959	9.2	174,658	49.6%	29.6	70.4
22	Total	-1	(0.00%)	651,618	288,719	112,461	158,405	267,797	95,102	44.3	17.3	24.3	41.1	14.6	2000	289,198	11.1	192,546	66.6%	36.6	63.4
	VAP			465,100	219,109	75,067	103,198	176,571	69,420	47.1	16.1	22.2	38.0	14.9	1998	260,905	10.2	109,180	41.8%	37.6	62.4

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.

Request:14634

POPULATION AND GENERAL ELECTION HISTORY
CONGRESSIONAL DISTRICTS - PLAN 01123C

PLAN 01123C DIST		2000 CENSUS: TOTAL POPULATION DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	%POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: YEAR	VOTER REG: TOTAL	VOTER REG: %SPAN	TURNOUT: TOTAL	TURNOUT: TO/VR	STATEWIDES**: %DEM	STATEWIDES**: %REP
23	Total	0	(0.00%)	651,619	171,576	19,288	455,580	472,887	7,156	26.3	3.0	69.9	72.6	1.1	2000	300,505	56.6	154,983	51.6%	44.6	55.4
	VAP			437,205	132,651	12,988	287,444	299,481	5,073	30.3	3.0	65.7	68.5	1.2	1998	286,429	54.2	99,280	34.7%	51.3	48.7
24	Total	0	(0.00%)	651,619	185,273	74,237	370,028	441,995	24,351	28.4	11.4	56.8	67.8	3.7	2000	208,564	24.7	116,632	55.9%	52.4	47.6
	VAP			460,035	157,411	50,563	234,970	284,309	18,315	34.2	11.0	51.1	61.8	4.0	1998	197,099	21.8	63,946	32.4%	51.3	48.7
25	Total	0	(0.00%)	651,619	299,332	110,556	202,002	309,897	42,390	45.9	17.0	31.0	47.6	6.5	2000	291,556	13.5	192,838	66.1%	43.5	56.5
	VAP			464,252	232,271	73,005	128,613	200,144	31,837	50.0	15.7	27.7	43.1	6.9	1998	272,898	12.1	108,568	39.8%	42.6	57.4
26	Total	0	(0.00%)	651,619	454,899	52,103	91,346	142,133	54,587	69.8	8.0	14.0	21.8	8.4	2000	326,869	5.0	236,419	72.3%	28.0	72.0
	VAP			495,688	356,281	37,106	62,785	99,201	40,206	71.9	7.5	12.7	20.0	8.1	1998	298,293	4.3	125,939	42.2%	26.0	74.0
27	Total	0	(0.00%)	651,619	169,404	16,742	457,508	472,156	10,059	26.0	2.6	70.2	72.5	1.5	2000	300,404	58.7	162,150	54.0%	50.1	49.9
	VAP			449,092	135,224	10,755	296,757	306,564	7,304	30.1	2.4	66.1	68.3	1.6	1998	291,396	57.7	99,694	34.2%	54.0	46.0
28	Total	0	(0.00%)	651,619	189,020	65,389	386,981	448,962	13,637	29.0	10.0	59.4	68.9	2.1	2000	340,607	50.1	173,980	51.1%	52.7	47.3
	VAP			450,604	147,519	43,859	250,753	293,094	9,991	32.7	9.7	55.6	65.0	2.2	1998	320,746	48.8	97,360	30.4%	54.6	45.4
29	Total	0	(0.00%)	651,619	111,121	96,099	436,172	529,503	10,995	17.1	14.7	66.9	81.3	1.7	2000	242,588	40.6	124,667	51.4%	67.6	32.4
	VAP			441,045	92,551	66,670	275,040	340,216	8,278	21.0	15.1	62.4	77.1	1.9	1998	244,330	37.4	71,160	29.1%	68.4	31.6
30	Total	0	(0.00%)	651,619	178,401	327,842	128,816	453,416	19,802	27.4	50.3	19.8	69.6	3.0	2000	317,376	6.8	193,067	60.8%	68.8	31.2
	VAP			448,742	138,896	220,127	77,655	296,106	13,740	31.0	49.1	17.3	66.0	3.1	1998	300,353	5.8	110,030	36.6%	68.3	31.7
31	Total	0	(0.00%)	651,619	515,195	28,049	83,571	110,868	25,556	79.1	4.3	12.8	17.0	3.9	2000	334,225	5.7	227,025	67.9%	30.2	69.8
	VAP			467,107	378,871	18,918	51,644	70,203	18,033	81.1	4.1	11.1	15.0	3.9	1998	300,944	5.2	118,427	39.4%	33.9	66.1
	Total	-1	(0.00%)	651,618	195,575	20,648	429,514	448,474	7,569	30.0	3.2	65.9	68.8	1.2	2000	293,117	51.9	153,603	52.4%	49.1	50.9
	VAP			444,814	154,387	14,833	270,904	284,844	5,583	34.7	3.3	60.9	64.0	1.3	1998	249,727	53.0	92,687	37.1%	54.1	45.9

* In most contests, election results do not include results from third party, independent, or write-in candidates. Complete official results are maintained by the office of the secretary of state.
** "Statewides" is a weighted average of the results of all general election statewide contested contests.

POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01206S

PLAN 01206S DIST		2000 CENSUS: TOTAL POPULATION: DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	VOTER REG: TOTAL	VOTER REG: %SPAN	TURNOUT: TOTAL	TURNOUT: TO/VR	STATEWIDES**: %DEM	STATEWIDES**: %REP
1	Total	+ 28,938	(+4.30%)	701,577	498,912	133,714	59,605	192,328	10,337	71.1	19.1	8.5	27.4	1.5	2000	375,085	1.8	240,199	64.0%	38.9	61.1
	VAP			518,938	383,913	92,392	35,621	127,457	7,568	74.0	17.8	6.9	24.6	1.5	1998	369,802	1.5	155,929	42.2%	47.2	52.8
2	Total	-26,336	(-3.92%)	646,303	181,936	75,876	367,687	441,313	23,054	28.2	11.7	56.9	68.3	3.6	2000	208,523	24.5	116,647	55.9%	53.4	46.6
	VAP			456,043	154,719	52,022	233,278	284,076	17,248	33.9	11.4	51.2	62.3	3.8	1998	197,009	21.6	64,134	32.6%	52.5	47.5
3	Total	+ 32,530	(+4.84%)	705,169	533,272	94,630	67,217	160,910	10,987	75.6	13.4	9.5	22.8	1.6	2000	389,793	2.8	249,500	64.0%	35.4	64.6
	VAP			526,867	410,374	66,609	42,354	108,448	8,045	77.9	12.6	8.0	20.6	1.5	1998	372,897	2.5	154,119	41.3%	42.6	57.4
4	Total	+ 30,459	(+4.53%)	703,098	465,637	137,269	80,797	216,559	20,902	66.2	19.5	11.5	30.8	3.0	2000	387,042	6.0	267,600	69.1%	43.5	56.5
	VAP			510,639	350,161	94,390	52,301	145,898	14,580	68.6	18.5	10.2	28.6	2.9	1998	373,452	5.7	155,798	41.7%	52.2	47.8
5	Total	-18,346	(-2.73%)	654,293	452,487	71,215	114,866	184,622	17,184	69.2	10.9	17.6	28.2	2.6	2000	334,956	8.5	233,638	69.8%	30.8	69.2
	VAP			481,460	347,902	48,580	72,795	120,703	12,855	72.3	10.1	15.1	25.1	2.7	1998	296,060	8.1	141,300	47.7%	37.2	62.8
6	Total	+ 22,084	(+3.28%)	694,723	140,714	79,970	460,010	536,992	17,017	20.3	11.5	66.2	77.3	2.4	2000	247,537	41.4	129,165	52.2%	61.5	38.5
	VAP			470,221	115,758	53,727	289,645	341,772	12,691	24.6	11.4	61.6	72.7	2.7	1998	246,743	38.2	72,007	29.2%	61.6	38.4
7	Total	-1,469	(-0.22%)	671,170	472,913	46,382	105,839	150,790	47,467	70.5	6.9	15.8	22.5	7.1	2000	357,486	7.8	254,842	71.3%	23.5	76.5
	VAP			474,121	344,920	29,596	67,185	96,038	33,163	72.7	6.2	14.2	20.3	7.0	1998	318,150	6.8	132,199	41.6%	22.2	77.8
8	Total	+ 19,623	(+2.92%)	692,262	509,186	39,611	80,417	118,930	64,146	73.6	5.7	11.6	17.2	9.3	2000	362,343	4.5	262,572	72.5%	25.3	74.7
	VAP			511,700	384,778	26,965	54,250	80,673	46,249	75.2	5.3	10.6	15.8	9.0	1998	315,542	4.1	135,519	42.9%	24.0	76.0
9	Total	+ 29,402	(+4.37%)	702,041	550,113	37,581	71,720	108,319	43,609	78.4	5.4	10.2	15.4	6.2	2000	360,443	5.1	259,385	72.0%	25.3	74.7
	VAP			497,685	396,830	24,527	46,513	70,569	30,286	79.7	4.9	9.3	14.2	6.1	1998	318,983	4.6	120,696	37.8%	25.0	75.0
10	Total	+ 19,331	(+2.87%)	691,970	519,738	49,047	95,603	143,373	28,859	75.1	7.1	13.8	20.7	4.2	2000	346,384	5.4	237,558	68.6%	30.5	69.5
	VAP			504,716	390,343	32,968	60,919	93,243	21,130	77.3	6.5	12.1	18.5	4.2	1998	321,791	4.7	135,221	42.0%	33.4	66.6
11	Total	+ 10,539	(+1.57%)	683,178	487,298	44,820	119,721	163,341	32,539	71.3	6.6	17.5	23.9	4.8	2000	382,026	10.0	277,889	72.7%	31.3	68.7
	VAP			487,339	360,315	28,975	75,687	104,179	22,845	73.9	5.9	15.5	21.4	4.7	1998	350,169	9.3	135,474	38.7%	31.8	68.2

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Admitted into the trial record as Balderas Pl. Exh. 4 in the senate phase of the case.
Request:15071

POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01206S

PLAN 01206S DIST		2000 CENSUS: DEVIATION		TOTAL POPULATION: TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION: %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY*: -YEAR-	—VOTER REG— TOTAL	%SPAN	—TURNOUT— TOTAL	TO/VR	STATEWIDES** %DEM	%REP
12	Total	+ 4,274	(+0.64%)	676,913	343,274	124,052	183,951	305,865	27,774	50.7	18.3	27.2	45.2	4.1	2000	298,566	11.4	198,791	66.6%	48.3	51.7
	VAP			490,545	274,167	82,918	114,587	196,475	19,903	55.9	16.9	23.4	40.1	4.1	1998	292,584	10.2	116,707	39.9%	49.8	50.2
13	Total	+ 11,538	(+1.72%)	684,177	139,176	323,559	169,364	488,673	56,328	20.3	47.3	24.8	71.4	8.2	2000	321,371	8.8	203,203	63.2%	71.7	28.3
	VAP			494,716	119,727	224,317	109,458	331,328	43,661	24.2	45.3	22.1	67.0	8.8	1998	309,364	7.7	122,545	39.6%	71.7	28.3
14	Total	+ 30,171	(+4.49%)	702,810	370,776	77,172	214,063	288,132	43,902	52.8	11.0	30.5	41.0	6.2	2000	361,934	16.0	250,636	69.2%	50.6	49.4
	VAP			539,871	308,089	52,872	145,040	196,348	35,434	57.1	9.8	26.9	36.4	6.6	1998	318,103	15.5	146,767	46.1%	53.8	46.2
15	Total	-28,152	(-4.19%)	644,487	201,570	169,517	242,393	408,914	34,003	31.3	26.3	37.6	63.4	5.3	2000	262,651	16.2	158,011	60.2%	54.7	45.3
	VAP			449,555	161,180	111,863	152,907	263,273	25,102	35.9	24.9	34.0	58.6	5.6	1998	253,189	14.3	85,473	33.8%	53.7	46.3
16	Total	+ 29,735	(+4.42%)	702,374	422,498	94,817	137,981	231,057	48,819	60.2	13.5	19.6	32.9	7.0	2000	328,503	6.6	221,077	67.3%	33.8	66.2
	VAP			512,974	326,703	62,413	89,204	150,724	35,547	63.7	12.2	17.4	29.4	6.9	1998	306,388	5.7	123,040	40.2%	31.1	68.9
17	Total	+ 32,371	(+4.81%)	705,010	377,059	82,026	163,429	243,027	84,924	53.5	11.6	23.2	34.5	12.0	2000	330,557	10.3	234,412	70.9%	32.6	67.4
	VAP			518,301	290,205	56,930	110,712	166,210	61,886	56.0	11.0	21.4	32.1	11.9	1998	298,979	9.6	129,368	43.3%	31.7	68.3
18	Total	-10,410	(-1.55%)	662,229	179,948	18,388	457,512	474,170	8,111	27.2	2.8	69.1	71.6	1.2	2000	296,821	54.8	153,854	51.8%	50.6	49.4
	VAP			451,964	143,153	13,162	290,659	302,900	5,911	31.7	2.9	64.3	67.0	1.3	1998	261,801	55.3	91,516	35.0%	54.7	45.3
19	Total	-7,522	(-1.12%)	665,117	201,867	32,277	424,117	453,985	9,265	30.4	4.9	63.8	68.3	1.4	2000	321,007	51.9	169,790	52.9%	47.9	52.1
	VAP			458,451	159,874	22,812	270,079	291,801	6,776	34.9	5.0	58.9	63.6	1.5	1998	306,951	50.0	107,670	35.1%	52.9	47.1
20	Total	-14,790	(-2.20%)	657,849	184,551	18,556	446,038	462,395	10,903	28.1	2.8	67.8	70.3	1.7	2000	308,984	56.4	167,762	54.3%	49.2	50.8
	VAP			455,262	146,242	12,036	290,017	301,063	7,957	32.1	2.6	63.7	66.1	1.7	1998	297,946	55.7	102,966	34.6%	53.5	46.5
21	Total	-22,421	(-3.33%)	650,218	174,735	52,765	412,908	462,515	12,968	26.9	8.1	63.5	71.1	2.0	2000	324,033	52.7	162,898	50.3%	49.5	50.5
	VAP			444,280	135,677	34,982	265,619	299,110	9,493	30.5	7.9	59.8	67.3	2.1	1998	292,749	52.0	91,212	31.2%	53.2	46.8
22	Total	-74	(-0.01%)	672,565	440,442	116,450	104,692	219,283	12,840	65.5	17.3	15.6	32.6	1.9	2000	328,587	6.7	207,180	63.1%	39.8	60.2
	VAP			499,791	343,569	81,352	66,141	146,662	9,560	68.7	16.3	13.2	29.3	1.9	1998	314,258	6.2	130,547	41.5%	46.8	53.2

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POPULATION AND GENERAL ELECTION HISTORY
SENATE DISTRICTS - PLAN 01206S

PLAN 01206S DIST		2000 CENSUS TOTAL POPULATION DEVIATION		TOTAL	ANGLO	BLACK	HISP	B+H	OTHER	% POPULATION %A	%B	%H	%B+H	%O	GENERAL ELECTION HISTORY* -YEAR-	VOTER REG TOTAL	VOTER REG %SPAN	TURNOUT TOTAL	TURNOUT TO/VR	STATEWIDES** %DEM	STATEWIDES** %REP
23	Total	-20,496	(-3.05%)	652,143	216,971	286,225	125,476	408,661	26,511	33.3	43.9	19.2	62.7	4.1	2000	314,886	7.7	190,086	60.4%	62.9	37.1
	VAP			450,888	167,184	190,413	76,298	265,214	18,490	37.1	42.2	16.9	58.8	4.1	1998	292,879	6.6	103,553	35.4%	61.4	38.6
24	Total	-30,857	(-4.59%)	641,782	448,438	68,356	108,776	174,227	19,117	69.9	10.7	16.9	27.1	3.0	2000	329,516	9.7	210,338	63.8%	31.3	68.7
	VAP			471,676	347,928	43,686	67,509	109,852	13,896	73.8	9.3	14.3	23.3	2.9	1998	308,100	9.3	137,427	44.6%	39.1	60.9
25	Total	-19,027	(-2.83%)	653,612	509,495	17,551	105,062	121,619	22,498	78.0	2.7	16.1	18.6	3.4	2000	407,707	10.4	301,117	73.9%	26.0	74.0
	VAP			479,697	383,932	11,396	69,018	79,967	15,798	80.0	2.4	14.4	16.7	3.3	1998	355,043	9.6	174,467	49.1%	28.1	71.9
26	Total	-16,373	(-2.43%)	656,266	190,934	33,880	415,920	446,551	18,781	29.1	5.2	63.4	68.0	2.9	2000	337,890	53.4	183,408	54.3%	50.7	49.3
	VAP			472,622	154,372	22,788	282,765	304,107	14,143	32.7	4.8	59.8	64.3	3.0	1998	316,465	52.4	101,028	31.9%	51.5	48.5
27	Total	-27,781	(-4.13%)	644,858	194,169	23,364	420,625	442,341	8,348	30.1	3.6	65.2	68.6	1.3	2000	311,880	50.4	167,370	53.7%	48.7	51.3
	VAP			442,118	153,011	16,843	267,247	283,351	5,756	34.6	3.8	60.4	64.1	1.3	1998	298,911	48.8	103,007	34.5%	52.2	47.8
28	Total	-25,234	(-3.75%)	647,405	414,892	49,907	170,556	218,777	13,736	64.1	7.7	26.3	33.8	2.1	2000	341,504	17.8	210,211	61.6%	30.9	69.1
	VAP			477,490	326,237	34,365	107,345	141,076	10,177	68.3	7.2	22.5	29.5	2.1	1998	332,922	16.8	146,361	44.0%	39.2	60.8
29	Total	-31,099	(-4.62%)	641,540	114,103	23,309	495,301	515,339	12,098	17.8	3.6	77.2	80.3	1.9	2000	292,625	64.2	143,580	49.1%	56.7	43.3
	VAP			439,469	90,366	15,112	326,478	340,148	8,955	20.6	3.4	74.3	77.4	2.0	1998	267,868	62.9	90,653	33.8%	60.0	40.0
30	Total	+23,658	(+3.52%)	696,297	571,354	39,752	68,884	107,921	17,022	82.1	5.7	9.9	15.5	2.4	2000	366,300	3.4	237,458	64.8%	33.7	66.3
	VAP			513,248	431,253	27,338	42,464	69,460	12,535	84.0	5.3	8.3	13.5	2.4	1998	341,895	3.0	144,370	42.2%	40.0	60.0
31	Total	-24,255	(-3.61%)	648,384	424,855	31,019	179,136	208,703	14,826	65.5	4.8	27.6	32.2	2.3	2000	330,301	14.6	209,116	63.3%	23.2	76.8
	VAP			462,414	323,284	20,289	108,806	128,532	10,598	69.9	4.4	23.5	27.8	2.3	1998	322,189	13.1	140,272	43.5%	28.5	71.5

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